ONTARIO

Superior Court of Justice

Defence

Form 9A Ont. Reg. No.: 258/98

Toronto	SC-25-00014152-0000
Small Claims Court	Claim No.

47 Sheppard Avenue East, Toronto, ON

Address

416-326-3592

Phone number

Plaintiff No. 1 ☐ Additional plaintiff(s) listed on attached Form 1A. ☐ Under 18 years of age.

Last name, or name of company		
Aders		
First name	Second name	Also known as
Alexander	**John**	
Address (street number, apt., unit)		
[redacted]		
City/Town	Province	Phone no.
Winter Garden	**FL**	[redacted]
Postal code	Email address	
[redacted]	[redacted]	
Representative		Law Society of Ontario no.
Address (street number, apt., unit)		
City/Town	Province	Phone no.
Postal code	Email address	

Defendant No. 1 ☐ Additional defendant(s) listed on attached Form 1A. ☐ Under 18 years of age.

Last name, or name of company		
The Governing Council of the University of Toronto		
First name	Second name	Also known as
Address (street number, apt., unit)		
27 King's College Circle, Simcoe Hall, Suite 106		
City/Town	Province	Phone no.
Toronto	**ON**	**416-978-6576**
Postal code	Email address	
M5S 1A1	**governing.council@utoronto.ca**	
Representative		Law Society of Ontario no.
Leora Jackson		**A068448L**
Address (street number, apt., unit)		
Knox College, 59 St. George Street, Suite 175,		
City/Town	Province	Phone no.
Toronto	**ON**	**647-222-7512**
Postal code	Email address	
M5S 2E6	**legal@utoronto.ca**	

Les formules des tribunaux sont affichées en anglais et en français sur le site www.ontariocourtforms.on.ca. Visitez ce site pour des renseignements sur des formats accessibles.

Continued on next page

THIS DEFENCE IS BEING FILED ON BEHALF OF: (Name(s) of defendant(s))

The Governing Council of the University of Toronto

and I/we: (Check as many as apply)

☒ Dispute the claim made against me/us.

☐ Admit the full claim and propose the following terms of payment:

$ _____ per _____ commencing _____, 20 _____ .
(Amount) (Week/month)

☐ Admit part of the claim in the amount of $ _____ and propose the following terms of payment:
(Amount)

$ _____ per _____ commencing _____, 20 _____ .
(Amount) (Week/month)

REASONS FOR DISPUTING THE CLAIM AND DETAILS:

Explain what happened, including where and when. Explain why you do not agree with the claim made against you.

If you are relying on any documents, you **MUST** attach copies to the Defence. If evidence is lost or unavailable, you **MUST** explain why it is not attached.

What happened? See Schedule A
Where?
When?

Continued on next page

Why I/we disagree with all or part of the claim: See Schedule A

☒ **ADDITIONAL PAGES ARE ATTACHED BECAUSE MORE ROOM WAS NEEDED.**

Prepared on: May 20, 20 26

L Jackson
(Signature of defendant or representative)

NOTE:	Within seven (7) calendar days of changing your address for service, notify the court and all other parties in writing.

CAUTION TO PLAINTIFF(S):	If this Defence contains a proposal of terms of payment, you are deemed to have accepted the terms **unless** you file with the clerk and serve on the defendant(s) a Request to Clerk (Form 9B) for a terms of payment hearing **WITHIN TWENTY (20) CALENDAR DAYS** of service of this Defence [R. 9.03(3)].

SCHEDULE "A"

DEFENCE OF THE GOVERNING COUNCIL OF THE UNIVERSITY OF TORONTO

1. The Defendant, The Governing Council of the University of Toronto (the "**University**"), denies the allegations in the Plaintiff's Claim (the "**Claim**") except as expressly admitted herein.

THE PARTIES

2. The University is a public research university comprised of a number of academic divisions and operational units. The Ontario Institute for Studies in Education ("**OISE**") is part of the University. OISE offers, on its own and together with other service providers, continuing education programs. These programs are administered by the Continuing and Professional Learning ("**CPL**") unit at OISE.

3. Mr. Alexander John Aders (the "**Plaintiff**") is a member of the public who entered a contract with a third-party that had a licensing agreement with the University. The Plaintiff is not, and was not at the relevant times, a student enrolled in a degree program at the University.

THE TEFL CERTIFICATE PROGRAM

4. The Teaching English as a First Language – TEFL – certificate program (the "**Program**") was a non-credit certificate program delivered by a third-party platform provider from 2014 to 2025. The Program was offered to participants in an electronic, self-directed format.

5. The third-party platform provider was Kesson Group Inc., a corporation incorporated pursuant to the laws of the Province of Ontario, which was then operating as Teach Away.

6. The Program was delivered by Kesson Group Inc. under a course development and licensing agreement (the "**Licensing Agreement**", attached at **Tab 01**) between Kesson Group Inc. and the University. Under the Licensing Agreement, the University provided the professional

learning content for the Program while Kesson Group Inc. administered the online learning platform and managed registration and course payments.

7. The University did not collect payments for the Program from registrants. Kesson Group Inc. managed registration and payment processing for the Program via Shopify, and the University did not have any administrative access or ownership over the Shopify account. When individuals, including the Plaintiff, enrolled in the Program, their payment was made directly to Kesson Group Inc. Under the Licensing Agreement, the University was entitled to subsequently receive royalty fees from Kesson Group Inc.

REFUND POLICY & TERMS AND CONDITIONS OF ENROLMENT

8. The University did not administer enrolment, payment processing, refund administration, or commercial terms governing participant transactions, which were administered by Kesson Group Inc., operating as Teach Away.

9. When an individual enrolled in the Program and submitted their payment, they acknowledged Teach Away's Terms of Service and Refund Policy ("Teach Away Terms" attached at **Tab 02**).

10. According to the Teach Away Terms, in section 7, no refunds were issued after enrolment regardless of whether a participant completed or passed the course. The Teach Away Terms also stated that all refund decisions were made solely by Teach Away (i.e., Kesson Group Inc.).

11. The University was not responsible for enrolment or refunds related to the Program. Teach Away assumed full responsibility for enrolment and payment. The University was responsible for the course content and quality.

PLURIBUS' ACQUISITION AND BANKRUPTCY

12. Kesson Group Inc. was acquired by Pluribus Technologies Corp. ("**Pluribus**") in or around January 2022.

13. The University last received payment of amounts owing under the Licensing Agreement in October 2024.

14. In 2024, Pluribus – and subsidiaries, including Kesson Group Inc. – commenced insolvency proceedings under the *Companies' Creditors Arrangement Act* (CCAA) and, on December 17, 2024, began court-supervised creditor protection. Notwithstanding that it had entered creditor protection, Kesson Group Inc. continued to enrol participants in the Program and collect payments from them.

15. OISE CPL only became aware of Pluribus's CCAA proceedings on February 12, 2025 (see email exchange including its attachments, attached at **Tab 03**). At that time, Kesson Group Inc. owed the University in excess of $140,520.54. After becoming aware of the CCAA proceedings, OISE CPL engaged with Pluribus regarding a continuation or winding down of the relationship between Kesson Group Inc. and the University. Pluribus ultimately disclaimed the Licensing Agreement in accordance with the CCAA.

16. After the arrangement between Kesson Group Inc. and the University concluded, OISE CPL began to offer Teaching English as a First Language programming directly, rather than through a third-party. OISE CPL's offering launched in 2026.

17. Although it had no legal obligation to do so, the University took good faith actions to ensure that affected participants were provided alternate completion options and credential pathways.

18. Learners were provided with options for program completion. First, if they had completed fewer than five units in the Program, they were offered complimentary access to the newly redeveloped TEFL Online Certificate Program (the "**New Program**") including the possibility of acknowledging prior learning and being fast-tracked through selected modules. Second, if they had successfully completed the first five units of the Program, they could elect for an independent study option to complete the final components and earn their certificate (the "**Legacy Program**"). For payment or refund-related concerns, they were directed to contact Kesson Group Inc./Pluribus.

THE PLAINTIFF'S INTERACTIONS WITH PLURIBUS AND THE UNIVERSITY

19. The Plaintiff appears to have enrolled in the Program through the Shopify portal operated by Kesson Group Inc. in January 2025.

20. In September 2025, the Plaintiff emailed the University to request a refund for the course. In accordance with the University's published FAQ on the Program (see attached at **Tab 04**), he was directed to contact Pluribus/Kesson Group Inc. to inquire about refunds. The OISE CPL Senior Program Manager also offered to schedule a call between the Plaintiff and the Associate Director for International & Innovation at OISE CPL to support him in finding an amenable solution. The Plaintiff declined the offer and reiterated his request for a full refund. (See email exchanges attached at **Tab 05**).

21. The Plaintiff subsequently emailed Pluribus to request the refund and was told that "[t]he company is bankrupt and there is no money for the creditors or any refunds." (See email exchange attached at **Tab 06**). Around the same time, the Plaintiff also emailed Teach Away, which was by then no longer part of Pluribus/Kesson Group Inc. Teach Away directed him to OISE CPL for course-related questions, offered him complimentary access to Teach Away's TEFL course, and said they could not offer a refund as financial matters – including student payments – had become

part of the CCAA restructuring process and that Teach Away could not process refunds. (See email exchange attached at **Tab 07**).

22. On December 8, 2025, the Plaintiff again emailed the University to request that the University refund him for the Program; the email contains many of the same allegations that appear in the Plaintiff's Claim. The University responded, reiterating that the University did not receive or process his payment as it was made directly to Kesson Group Inc.

23. Nonetheless, on a good faith basis, the University offered the Plaintiff the option to:

i. Continue to access the Legacy Program, with OISE CPL support to extend the completion deadline to a mutually agreeable timeline;

ii. Receive complimentary registration in the New Program to support his completion of the TEFL certification; or

iii. Receive complimentary registration in another OISE CPL program, at equivalent value. (See email exchange attached at **Tab 08**).

24. The Plaintiff did not respond to the University's offer and subsequently filed this Claim.

CONCLUSION

25. The University denies that it is liable to the Plaintiff in the manner described in the Claim or in any matter whatsoever.

26. The Plaintiff entered a contract with and paid Kesson Group Inc. for the Program. The University was not a party to the payment transaction. The Plaintiff did not have any contractual or other relationship with the University. Any liability or refund obligation for the services that the Plaintiff did not receive rests with Kesson Group Inc.

27. Like the Plaintiff, the University suffered losses as a result of its relationship with Kesson Group Inc. and its entry into CCAA proceedings.

28. In the alternative, the Plaintiff failed to mitigate his damages. The University and Teach Away each offered the Plaintiff options that would have enabled him to receive a service equivalent to the Program that he paid for. The Plaintiff did not accept that offer.

RELIEF SOUGHT

29. The University respectfully requests that this action be dismissed with costs.

Tab 1

MASTER AGREEMENT
Course Development & Licensing

THIS MASTER AGREEMENT (Course Development & Licensing) (this "**Agreement**") made as of the 21st day of August, 2020

BETWEEN:

KESSON GROUP INC. operating as "Teach Away", a corporation incorporated pursuant to the laws of the Province of Ontario (hereinafter "**Teach Away**")

-and-

THE GOVERNING COUNCIL OF THE UNIVERSITY OF TORONTO, as represented by the ONTARIO INSTITUTE FOR STUDIES IN EDUCATION, a faculty of the University of Toronto (hereinafter "**OISE**")

WHEREAS:

A. Teach Away engages in the business of teacher recruitment and teacher training for international placements, including for the purposes of teaching English as a second language overseas;

B. OISE offers teacher education programs at the undergraduate, graduate, and continuing education levels degrees and certificates for the completion of which are granted by the University of Toronto;

C. Pursuant to a Development and License Agreement dated April 10, 2012, and a License Agreement dated May 29, 2017 (together, the "**Previous Agreements**"), Teach Away (which previously operated as Teach Away Inc. until an amalgamation dated October 1, 2018) and OISE have collaborated on the design, development, and delivery of a series of educational courses, offered in an electronic, self-directed format suitable for use online in an internet-mediated environment through the Teach Away website, to candidates seeking international placement as a teacher of English as a second language, which candidates will be granted certificates of learning completion from OISE upon the successful completion of the applicable course requirements; and

D. As the Previous Agreements have both expired in accordance with their terms, Teach Away and OISE now wish to confirm their respective rights to the Course Content IP and the Electronic Delivery Files (both as defined below) and set out their respective continuing obligations in relation to the Existing Course (as defined below), as well as for any Additional Courses (as defined below) that Teach Away and OISE may design, develop, and deliver in collaboration in accordance with the terms of this Agreement;

NOW THEREFORE, IN CONSIDERATION of the mutual representations and covenants herein and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the parties agree as follows:

1. DEFINITIONS

In this Agreement:

(a) "**Additional Fees**" has the meaning given to it in Section 8(a)(iii).

(b) "**Claims**" means claims, demands, actions, losses, costs, damages and expenses, including reasonable legal expenses.

(c) "**Completion Schedule**" has the meaning given to it in Section 3(a)(i).

(d) "**Confidential Information**" means any and all information, ideas and concepts relating to the business or competitive interests of Teach Away or OISE, as the case may be, including any and all (i) Intellectual Property Rights and Work Product exercised in, used in or related to the business carried on by either party; (ii) technical information, work products, trade secrets, know-how, data, databases, results, analyses, procedures, formulae, specifications, techniques, methodology, and other technical and scientific expertise that relate to the business carried on by either party; (iii) business, financial, marketing, manufacturing, sales, distribution, customer, licensor, licensee, and supply information; (iv) names of, arrangements with, or other information relating to customers, equipment suppliers, manufacturers, financiers, owners or operators, representatives, and other persons who have business relationships with either party; (v) information related to the internal organization, personnel, methods and procedures, strategies, systems, pricing, credit, technology, software, facilities, capabilities, research and development and related recommendations and conclusions, planning, and work in process of the business carried on by either party; (vi) the name of any company or business, all or any substantial part of which is, or at any time was, a candidate for potential acquisition by Teach Away, together with all analysis and other information which Teach Away has generated, compiled, or otherwise obtained with respect to such candidate, business or potential acquisition, or with respect to the potential effect of such acquisition on Teach Away's business, assets, financial results, or prospects; (vii) any information about an identifiable individual that is protected by any privacy law; and (viii) information that would reasonably be considered to be confidential information, whether in written, oral or electronic form, but "Confidential Information" does not include information that is:

(i) in the public domain or becomes publicly available through no act or failure to act by either Teach Away or OISE, as the case may be; or

(ii) required to be disclosed by applicable law, provided that the party required to disclose such information immediately notifies the other party of such disclosure requirement and other party has the opportunity to contest or obtain a court order preventing such disclosure.

(e) "**Courses**" means, collectively:

(i) the series of educational courses collaboratively designed, developed, and offered for sale and participation to interested parties by Teach Away and

OISE pursuant to the terms and conditions of the Previous Agreements and this Agreement and offered in an electronic, self-directed format suitable for use online in an internet-mediated environment, through the Teach Away website, to candidates seeking international placement as a teacher of English as a second language, and for which candidates will be granted a certificate of learning completion from OISE upon their successful completion of the course requirements (the "**Existing Course**"); and

(ii) any other educational courses or series of educational courses that are collaboratively designed, developed, and offered for sale and participation to interested parties by Teach Away and OISE pursuant to the terms and conditions of this Agreement and offered in an electronic, self-directed format suitable for use online in an internet-mediated environment through the Teach Away website, and for which OISE will issue to Participants (as defined below) a recognition of learning, in accordance with OISE's program governance criteria, upon their successful completion of the course requirements (each, an "**Additional Course**"),

with the specific criteria and particulars of each Course more specifically described in schedules to be added this Agreement from time to time by Teach Away and OISE (each, a "**Course Schedule**"), with each Course Schedule being integral to this Agreement and incorporated by reference as and when added. The Course Schedule for the Existing Course is attached as Schedule "B".

(f) "**Course Content IP**" means all of the Work Product, including Intellectual Property Rights, directly related or pertaining to the Courses, including that which was developed by OISE, either on its own or in conjunction or collaboration with a third party other than Teach Away, pursuant to its obligations under the Previous Agreements and this Agreement, including but not limited to the syllabus attributable to each aspect of the Courses, the creation of modules within the Courses, the learning outcomes of such modules, and outcomes of all Participant testing and evaluation related to the courses, all of which formed the basis of the development of the Electronic Delivery Files by Teach Away. The parties acknowledge that certain aspects of the Course Content IP are inextricably intermingled with the Electronic Delivery Files to the extent that neither the Course Content IP nor the Electronic Delivery Files will be useful to the party that retains ownership rights therein.

(g) "**Course Content Licence**" has the meaning given to it in Section 7(a).

(h) "**Course Content Licence Fee**" has the meaning given to it in Section 8(a)(i).

(i) "**Defaulting Party**" has the meaning given to it in Section 5(f).

(j) "**Deficiency Notice**" has the meaning given to it in Section 5(f).

(k) "**Delay Costs**" has the meaning given to it in Section 5(f).

(l) "**Electronic Delivery Files**" means all of the files directly related or pertaining to the Courses, whether or not based on the Course Content IP, that were developed

by Teach Away, either on its own or in conjunction or collaboration with a third party, pursuant to its obligations under the Previous Agreements and this Agreement, that were was co-developed by Teach Away and OISE pursuant to the Previous Agreements and this Agreement, including but not limited to the substantive online content of the Courses, which includes the overall online learning content and site design, Participant assignments, videos to present all content of the Courses, and testing materials within a learning management software environment, all in both SCORM and HTMLS formats as applicable. The parties acknowledge that certain aspects of the Electronic Delivery Files are intermingled with the Course Content IP to the extent that neither the Electronic Delivery Files nor the Course Content IP will be useful to the party that retains ownership rights therein.

(m) "**Enrollment Fees**" means the total fees payable by Participants to Teach Away in consideration for enrollment in Courses.

(n) "**Fees**" means, collectively, the Course Content Licence Fee, the Royalty Fees, and any Additional Fees, and "**Fee**" means any of such Fees individually.

(o) "**Gross Revenue**" means the total revenue realized by Teach Away from the Enrollment Fees; provided that, for the purposes of such calculation, Enrollment Fees shall be recognized as revenue on the earlier of (i) the date a Participant is no longer permitted to obtain a refund of any Enrollment Fees paid; and (ii) the date a Participant completes a Course.

(p) "**Intellectual Property Rights**" means and includes all intellectual or industrial property rights recognized now or in the future under the laws of any jurisdiction throughout the world, including but not limited to trademarks and trade mark applications, trade names, certification marks, patents and patent applications, copyrights, and confidential information.

(q) "**Marks**" has the meaning given to it in Section 7(b)(ii).

(r) "**Material Breach**" means the occurrence of one or more of the following events:

(i) for a Course Schedule:

(A) by Teach Away,

(I) a failure to provide Participant enrollment data and details to OISE in accordance with its obligation under Section 12(a);

(II) a failure to pay a Fee; and

(III) a failure to secure enrollment of at least 20 Participants in any Course in any rolling 12-month period, and

(B) by OISE,

(I) a failure to complete the review and update of a Course within the specified time frame during each year of the Term in accordance with an applicable Completion Schedule or the Yearly Review; and

(II) a failure to update course tests and assignments within the specified time period each year as per an applicable Completion Schedule or the Yearly Review, and

(ii) for this Agreement, a breach of its representations and warranties set forth in Section 13(a), in respect of Teach Away, or in Section 13(b), in respect of OISE.

(s) "**Non-Defaulting Party**" has the meaning given to it in Section 5(f).

(t) "**OISE Work**" has the meaning given to it in Section 3(a).

(u) "**Participants**" means individuals enrolled to participate in a Course and "**Participant**" means any one of them.

(v) "**Personal Data**" means any information relating to an identified or identifiable individual, including, without limitation, the name, address, e-mail, telephone number, business contact information, date of birth, social security number, social insurance number, tax number, credit or debit card number, bank account number, assessment results, education records and any other unique identifier or one or more factors specific to the individual's physical, physiological, mental, economic, cultural or social identity (including sensitive personal data).

(w) "**Processing**" means any operation with Personal Data, irrespective of the means applied and the procedure, and in particular the collection, storage, use, revision, disclosure, transfer, archiving or destruction of Personal Data, including but not limited to obtaining, recording, or holding the Personal Data or carrying out any operation or set of operations on the Personal Data, including the organization, adaptation or alteration of the Personal Data, the retrieval, consultation or use of the information or data, the disclosure of the Personal Data by transmission, dissemination or otherwise making available, or the alignment, combination, blocking, erasure or destruction of the Personal Data.

(x) "**Royalty Fees**" has the meaning given to it in Section 8(a)(ii).

(y) "**Teach Away Work**" has the meaning given to it in Section 4(a).

(z) "**Term**" has the meaning given to it in Section 16(a).

(aa) "**Yearly Review**" means the timeline outlined in Schedule "A" hereto, which, *inter alia*, describes certain review milestones that are to be met by the parties, including the date by which such milestones are to be met.

(bb) "**Work Product**" means and includes everything that is a produced by a party or the parties in the performance of each or both of their obligations under the Previous Agreements or this Agreement, including but not limited to interim and final lines of inquiry, hypotheses, research and conclusions and the methods, processes, procedures, analyses, techniques and audits used in connection with all research and conclusions, teaching curriculum, whether in draft, final form or any other stage of actual or anticipated development, designs, processes, inventions, technical expertise, research data, trade secrets, industrial designs and other similar property, and all registrations and applications for registration thereof, and also includes computer software of any type or form and in any stage of actual or anticipated development, including but not limited to programs and program modules, routines, procedures, algorithms, design concepts, design specifications, source code, object code and load modules, programming and system designs, formulae, processes, patterns, discoveries, devices or compilations of information (including production data, technical and engineering data, test data and test results, and the status and details of the research and development of all products and services).

2. DEVELOPMENT & OFFERING OF COURSES

During the Term, in accordance with the terms and conditions of this Agreement and the applicable Course Schedule, OISE and Teach Away shall work together to:

(a) continue to offer the Existing Course; and

(b) if and to the extent agreed to pursuant to a Course Schedule, design, develop, deliver, and offer any Additional Courses.

3. OISE WORK

(a) OISE shall:

(i) for each Additional Course to be designed, developed, and delivered, as applicable, in accordance with the timeline set out in the applicable Course Schedule describing certain milestones and the date by which such milestones are to be met (each, a "**Completion Schedule**"),

(A) determine and design the program content of such Course;

(B) develop the syllabus attributable to each aspect of such Course;

(C) develop all modules within such Course and the learning outcomes of such modules;

(D) develop all Participant testing and evaluation related to such Course and all learning outcomes thereof;

(E) arrange for completion of a peer review and the submission of feedback;

(F) create all assignments and tests completed by Participants and the assessment keys; and

(G) co-design and co-develop the substantive online content of such Course, including overall online learning content and design of site, Participant assignments, videos to present all content of such Course, and testing materials within a learning management software environment, and

(ii) for the Existing Course and each Additional Course that is offered,

(A) in accordance with OISE's program governance criteria, and in OISE's sole discretion, issue a recognition of learning to each Participant who successfully completes the Course, within thirty (30) days of such completion, confirming the Participant's successful completion of such Course; and

(B) complete a yearly review of each Course and its testing materials and, based upon such review, design and develop program content for recommended changes in accordance with the time frame set forth in the Yearly Review; and

(iii) engage in such other activities and complete such other specific tasks as OISE and Teach Away may from time to time agree in writing, including in a Course Schedule

(collectively, the "**OISE Work**").

(b) OISE shall be solely responsible for all costs and expenses related to the OISE Work, including all wages, salaries and fees of its employees, contractors, consultants, agents and advisors (other than Teach Away), applicable taxes and all out-of-pocket expenses attributable to the OISE Work, and OISE may not claim contribution from Teach Away with respect to such costs; provided, however, that if any aspects of the OISE Work overlap with the Teach Away Work, the associated costs will be allocated on a *pro rata* basis between OISE and Teach Away in accordance with each party's respective contributions and costs, as applicable.

4. TEACH AWAY WORK

(a) Teach Away shall:

(i) for each Additional Course to be designed, developed, and delivered, as applicable, in accordance with the applicable Completion Schedule,

(A) provide consulting services to OISE with respect to the design of such Course with respect to the number of hours to be completed by Participants in such Course and the types of learning modules to be offered within such Course. For greater clarity, Teach Away will not be required to provide consulting services with respect to

the educational content of such Course, which task shall remain the sole responsibility of OISE;

(B) complete an industry analysis and demographic and market segmentation reports to analyze the structure and pricing of similar courses offered, identify the potential target audience, determine the key selling features, and detail the particular requirements of the specific markets for such Course;

(C) ensure that all online content is developed and/or programmed in both SCORM and HTML5 formats;

(D) identify and develop the necessary infrastructure for online hosting of such Course; and

(E) co-design and co-develop the online visual content of such Course, including overall online learning content and design of site, Participant assignments, videos to present all content of such Course, and testing materials within a learning management software environment, and

(ii) for the Existing Course and each Additional Course that is offered:

(A) provide online hosting services for the Courses on the Teach Away website or an alternative website that may be reached through a hyperlink from the Teach Away website;

(B) provide services to market the Courses to potential Participants in a commercially reasonable manner, including, at a minimum, through advertising on the Teach Away website and such other media as Teach Away determines in its discretion to be reasonable; and

(C) participate in a yearly review of each Course and its testing materials and, based upon such review, update content and testing parameters in accordance with the time frame set forth in the Yearly Review; and

(iii) engage in such other activities and complete such other specific tasks as OISE and Teach Away may from time to time agree in writing, including in a Course Schedule

(collectively, the "**Teach Away Work**").

(b) Teach Away shall be solely responsible for all costs and expenses related to the Teach Away Work, including all wages, salaries and fees of its employees, contractors, consultants, agents and advisors, applicable taxes and all out-of-pocket expenses attributable to the Teach Away Work, and Teach Away may not claim contribution from Teach Away with respect to such costs; provided, however, that if any aspects of the OISE Work overlap with the Teach Away Work, the

associated costs will be allocated on a *pro rata* basis between OISE and Teach Away in accordance with each party's respective contributions and costs, as applicable.

5. JOINT OBLIGATIONS OF OISE AND TEACH AWAY

(a) OISE and Teach Away shall cooperate with and assist each other by providing such information and access to personnel, materials, and resources as reasonably required to complete the Teach Away Work and the OISE Work.

(b) Each of the parties shall provide the other with such evidence that the other may reasonably request in writing from time to time to establish that the Teach Away Work and the OISE Work is being performed as required by this Agreement and the applicable Course Schedule.

(c) Each of the parties shall handle all Personal Data exchanged between them pursuant to this Agreement according to the data privacy and security policies referenced at Schedule "C".

(d) Each of the parties shall:

(i) promptly notify each other of any security incidents relating to Personal Data exchanged between them pursuant to this Agreement;

(ii) at the other's request, promptly cease the Processing of any Personal Data exchanged between them pursuant to this Agreement;

(iii) at the other's request, promptly return or destroy records of any Personal Data exchanged between them pursuant to this Agreement, as is reasonable in the circumstances; and

(iv) reasonably co-operate and assist the other with its legal or contractual obligations regarding data protection or privacy, including by notifying the other of

(A) any legally binding request for disclosure of the personal data by a law enforcement authority unless otherwise prohibited by the applicable law of the country of their principal place of business;

(B) any accidental or unauthorized access to Personal Data exchanged between them pursuant to this Agreement; and

(C) any complaint or request made by a data subject.

(e) OISE and Teach Away shall jointly establish:

(i) the naming of all Courses, and any proposed changes to such naming must be agreed to by both parties in writing;

(ii) the pricing of all Courses, and any proposed changes to such pricing must be agreed to by both parties in writing; and

(iii) any marketing slogans or other marketing materials to be associated with the Courses, and any proposed changes to such slogans and other materials must be agreed to by both parties in writing.

(f) In the event that either party (the "**Defaulting Party**") fails to fulfill its obligations and responsibilities hereunder, and such failure causes any Course not to be available for offer and delivery to Participants at any time during the Term, the party not in default of its obligations and responsibilities (the "**Non-Defaulting Party**") may provide the Defaulting Party with a written notice of the delay (a "**Deficiency Notice**"), which shall include particulars detailing the failure of the Defaulting Party and the reasonable costs of the Non-Defaulting Party resulting therefrom (the "**Delay Costs**"), and the Defaulting Party shall be required to pay the Delay Costs to the Non-Defaulting Party.

6. INTELLECTUAL PROPERTY RIGHTS

(a) ***Course Content IP.***

(i) Teach Away acknowledges and agrees that all Course Content IP, including all Intellectual Property Rights and goodwill associated with the Course Content IP, shall be, remain, or become upon creation, as the case may be, the sole and exclusive property of OISE and its permitted successors, assignees and licensees.

(ii) Teach Away acknowledges and agrees that OISE owns, exclusively, throughout the universe, and in perpetuity, all right, title, and interest, including all Intellectual Property Rights, in and to the Course Content IP that exists as of the date of this Agreement and, further, agrees to execute the short-form Assignment and Waiver attached as Schedule "D" to confirm OISE's ownership.

(iii) Teach Away further acknowledges and agrees that, upon creation of any new Course Content IP, Teach Away shall assign to OISE, exclusively, throughout the universe, and in perpetuity, all right, title, and interest, including all Intellectual Property Rights, in and to all new Course Content IP.

(iv) In relation to both the Course Content IP that exists as of the date of this Agreement and any new Course Content IP that may be created during the Term, Teach Away, on behalf of itself, its successors and assigns does hereby waive or shall waive, and shall cause any individuals who have contributed to the Course Content IP on behalf of Teach Away to waive, in favour of OISE and its successors, assigns and licensees, the benefit of any provision of law known as "moral rights" or "droits moreaux" in and to any Course Content IP, which rights include, but are not limited to, the right to the integrity of the Course Content IP, the right to be associated with the Course Content IP as its author by name or under a pseudonym or to remain anonymous, and the right to use the Course Content IP in association with any product, service, cause, or institution.

(v) If OISE, in its reasonable discretion, determines that it is necessary that Teach Away execute any further documents or instruments to confirm or better evidence OISE's entitlement to the rights assigned by Teach Away in this Agreement, including an Assignment and Waiver relating to any new Course Content that may be created during the Term (in a form substantially similar to the Assignment and Waiver attached as Schedule "D"), Teach Away shall, subject to its review and the implementation of any reasonable and mutually agreed modifications thereto, promptly execute such documents or instruments. Teach Away agrees that this obligation will continue after the termination of this Agreement.

(vi) Upon the termination of this Agreement, regardless of how that termination may occur, all notes, data, reference items, sketches, drawings, memoranda, records, files, diskettes and other means of electronic storage, and other materials containing or otherwise directly related to the Course Content IP shall belong exclusively to OISE and Teach Away shall at once deliver or cause to be delivered to OISE all originals and all copies of such materials constituting Course Content IP in its possession, control or custody at the request of OISE or, in the absence of such request, on the termination of this Agreement.

(b) ***Electronic Delivery Files.***

(i) The parties acknowledge and agree that all Electronic Delivery Files, including all Intellectual Property Rights and goodwill associated with the Electronic Delivery Files, shall be, remain or become upon creation, as the case may be, the joint property of Teach Away and OISE and their permitted successors, assignees and licensees.

(ii) Upon creation of any Electronic Delivery Files and to the extent necessary, each party shall assign to the other, exclusively, throughout the universe, and in perpetuity, such right, title, and interest in and to such Electronic Delivery Files to cause each party to own an undivided 50% interest in and to such Electronic Delivery Files, including the Intellectual Property Rights therein.

(iii) The parties acknowledge and agree that each of OISE and Teach Away owns, throughout the universe, an undivided 50% interest in and to all Electronic Delivery Files that exist as of the date of this Agreement, including the Intellectual Property Rights therein.

(iv) In relation to both the Electronic Delivery Files that exist as of the date of this Agreement and any new Electronic Delivery Files that may be created during the Term, each of OISE and Teach Away waives or has waived, in favour of the other and the other's successors, assigns and licensees, the benefit of any provision of law known as "moral rights" or "droits moreaux" in and to any Electronic Delivery Files including, but not limited to, the right to the integrity of the Electronic Delivery Files, the right to be associated

with the Electronic Delivery Files as its author by name or under a pseudonym and the right to remain anonymous.

(v) Each party shall execute, at the request of the other, any instrument in writing that the other party considers necessary to assign to it an undivided 50% ownership interest in and to any and all Electronic Delivery Files and the Intellectual Property Rights therein. The parties agree that this obligation will continue after the termination of this Agreement.

(vi) Upon the termination of this Agreement, regardless of how that termination shall occur, all Electronic Delivery Files, together with all notes, data, reference items, sketches, drawings, memoranda, records, files, diskettes and other means of electronic storage, and other materials directly related to the Electronic Delivery Files shall be destroyed, unless otherwise agreed to in writing by both parties.

7. LICENCE

(a) Teach Away hereby grants OISE an exclusive, irrevocable licence, during the Term, to freely use or adapt the Electronic Delivery Files solely for the purpose of facilitating the performance of OISE's obligations under this Agreement.

(b) OISE hereby grants Teach Away an exclusive and, subject to Section 7(d) and any branding or other guidelines provided by OISE from time to time, irrevocable licence (the "**Course Content Licence**"), during the Term, to

(i) freely use or adapt the Course Content IP for the exclusive purpose of facilitating the performance of Teach Away's obligations under this Agreement including, but not limited to the distribution of the Courses via the Teach Away website; and

(ii) use the names "The University of Toronto", "Ontario Institute for Studies in Education" and "OISE" together with any derivatives of such names and logos approved by OISE, and both individually and collectively (collectively, the "**Marks**") solely for the purposes of marketing the Courses or otherwise facilitating Teach Away's obligations under this Agreement; provided, however, that in no circumstances will the Marks or any derivative thereof constitute any part of the Electronic Delivery Files.

(c) OISE represents and warrants that it owns, licenses or is entitled to lawfully use, sublicense and grant rights associated with the Marks and all associated goodwill.

(d) Teach Away shall not

(i) adopt, use, or register any corporate name, trade name, domain name, trademark, service mark, or certification mark, or other designation similar to, or containing in whole or in part, any of the Marks without the express written consent of OISE;

(ii) use the Marks in any manner that expresses or might imply Teach Away's affiliation, sponsorship, endorsement, certification, or approval, other than as contemplated by this Agreement;

(iii) use the Marks in association with any third party trademarks in a manner that might suggest co- branding or otherwise create potential confusion as to ownership of the Marks;

(iv) display the Marks in any manner or way that disparages OISE or The University of Toronto;

(v) use the Marks otherwise than as provided by OISE from time to time electronically or in hard copy form; or

(vi) alter the Marks in any manner, including proportions, colors, elements, etc., or animated, morphed, or otherwise distorted in perspective or dimensional appearance.

(e) Teach Away shall promptly give notice to OISE if and when it becomes aware of any actual, suspected, or threatened infringement of the Marks by a third party. OISE will have the sole right to and in its sole discretion may commence, prosecute or defend, and control any action concerning the Marks and Teach Away shall cooperate reasonably with OISE in the prosecution or defence of any such action.

(f) Teach Away shall fully correct and remedy any deficiencies in its use of the Marks in conformance to the requirements of the Course Content Licence, including branding or other guidelines, upon reasonable notice from OISE. Teach Away represents and warrants that it will comply with all applicable laws, rules, and regulations in its use of the Marks.

(g) The Course Content Licence may not be assigned, transferred, or sublicensed by Teach Away without the prior written consent of OISE. Any unauthorized transfer shall be null and void.

(h) The Marks may not be imitated in any of Teach Away's printed or electronic materials except for purposes of the Course Content Licence and the Courses. The Marks may not be used as a design feature or prominent graphic in any of Teach Away's printed or electronic materials except for purposes of the Course Content Licence and the Courses.

(i) Any and all goodwill that develops through the use of the Marks by either party in accordance with this Agreement is and shall be the sole property of OISE.

(j) Unless otherwise agreed to in writing by the parties, the Course Content Licence will terminate contemporaneously with the termination of this Agreement, at which time Teach Away shall cease using the Marks and shall either return to OISE – or, at the request of OISE, shall destroy – all physical and electronic copies of and materials associated with the Course Content IP.

8. FEES

(a) During the Term, in consideration of the granting of the Course Content Licence, Teach Away shall pay to OISE the following:

(i) an annual licence fee in the amount of **TEN THOUSAND DOLLARS ($10,000.00)** (the "**Course Content Licence Fee**"). The first Course Content Licence Fee shall be paid by Teach Away to OISE concurrently with the execution of this Agreement and each successive Course Content Licence Fee shall be paid by Teach Away on each anniversary date of this Agreement;

(ii) for each Course, a royalty fee equal to the percentage identified as the "OISE Course Revenue Share" in the applicable Course Schedule of the Gross Revenue realized by Teach Away through its offering and delivery of such Course to Participants (the "**Royalty Fees**"); and

(iii) any other fees to be paid by Teach Away to OISE, if applicable, as more specifically described in the applicable Course Schedule (the "**Additional Fees**").

(b) All applicable taxes chargeable on the Fees shall be payable by OISE; provided, however that OISE shall not be responsible for any taxes on income payable by Teach Away whatsoever.

9. CONFIDENTIAL INFORMATION

(a) Each of OISE and Teach Away acknowledges that it may obtain or gain knowledge of Confidential Information, which it acknowledges and agrees is the exclusive property of the other party and each of OISE and Teach Away hereby covenants and agrees to keep, and to cause its affiliates, directors, officers, employees, agents, consultants and agents to keep, the Confidential Information of the other party confidential and: (i) not to directly or indirectly in any manner communicate, publish or otherwise disclose any of the Confidential Information of the other party no matter how and when knowledge of any Confidential Information was or is acquired; and (ii) not to use, in whole or in part directly or indirectly any Confidential Information of the other party for any purpose other than as necessary in the course of completion of the OISE Work or the Teach Away Work, as the case may be; provided, however, that at no time will either party treat or use the Confidential Information of the other party differently than it would treat and deal with its own Confidential Information.

(b) Each party agrees that if it violates any of the covenants or agreements under this Section 9, the other party will be entitled to an accounting and repayment of all profits, compensation, royalties, commissions, remunerations or benefits which the party in breach of this Section 9 directly or indirectly realized or may realize relating to, growing out of, or in connection with any such violations, which remedy will be in addition to and not in limitation of any injunctive relief or other rights or remedies to which Teach Away is or may be entitled at law or in equity or otherwise under this Agreement.

10. RESTRICTIONS REASONABLE; INJUNCTIVE RELIEF

Each party acknowledges and agrees that the other party may suffer irreparable harm in the event that it breaches any of its obligations under Section 9 of this Agreement, and that monetary damages would be inadequate to compensate the other party for such breach. Accordingly, each of OISE and Teach Away agrees that, in the event of a breach or threatened breach by the other party of Section 9 of this Agreement, OISE or Teach Away, as the case may be, and in addition to and not in limitation of any other rights, remedies or damages available to it at law or in equity, shall be entitled to an interim injunction, interlocutory injunction and permanent injunction in order to prevent or to restrain any such breach by the other party, or by any or all of the partners, joint venturers, employees, servants, agents, representatives or any and all persons directly or indirectly acting for, on behalf of or with the other party.

11. MANAGEMENT COMMITTEE

(a) ***Management Committee.*** Teach Away and OISE agree to continue to operate a management committee (the "**Management Committee**"), which shall decide all matters of policy relating to the Courses and this Agreement. In particular, the Management Committee shall cause the terms of this Agreement to be implemented and give such directions to the parties as may be necessary from time to time. The Management Committee may, from time to time, delegate any powers and responsibilities to any person as it may see fit. The Management Committee shall consist of 6 members (the "**Nominees**"), of whom an equal number shall be appointed by each of Teach Away and OISE. Each party shall be entitled, from time to time, to change its Nominees upon written notice to the other party. Such change of Nominee(s) shall be effective upon receipt of such written notice by the Nominee of the other party. The parties acknowledge that OISE will retain the authority to make all determinations regarding the content, academic or otherwise, of the Courses.

(b) ***Meetings and notice.*** A party may, by giving at least five (5) days' written notice sent by courier, registered mail, e-mail or delivered personally to each Nominee, summon a meeting of the Management Committee at a place and time to be set out in such notice; provided that a meeting may be held on shorter notice or without notice if agreed to by the Management Committee by written waiver of such notice requirements. Meetings shall be held at such place as the Nominees may unanimously agree upon. A notice summoning a meeting will describe in reasonable data the matters proposed to be discussed at such meeting as no other matters will be discussed without the consent of one Nominee of each party. A party or Nominee may have a reasonable number of advisors present at any meeting. Subject to the foregoing, the Management Committee shall be required to meet at least once per year within 30 days following each anniversary date of this Agreement to review the content of the Courses, including but not limited to the evaluations completed by Participants and to consider any changes that need to be made to the content of the Courses or the Courses generally.

(c) ***Quorum.*** A quorum for any meeting of the Management Committee shall consist of all Nominees and no business (including voting) shall be transacted at any meeting of the Management Committee unless a quorum is present throughout the meeting.

(d) ***Voting.*** All matters to be determined at a meeting of the Management Committee shall be decided by a majority vote of the Nominees present in person. All matters so determined will be binding upon the parties.

(e) ***Expenses.*** All costs and expenses incurred by the Management Committee in connection with the carrying out of the terms of this Agreement shall be shared equally by the parties.

(f) ***Chairman.*** At each meeting of the Management Committee a Chairman shall be elected from among the Nominees to oversee such meeting, but the Chairman, at any meeting, shall in no case have a second or casting vote.

(g) ***Written consent in lieu of meeting.*** A decision on any matter evidenced by the consent in writing of all of the Nominees of the Management Committee shall be as valid as if it had been decided at a duly called and held meeting of the Management Committee. Each decision consented to in writing may be in counterparts, which together shall be deemed to constitute one decision.

(h) ***Other procedures.*** The Management Committee may make such other rules governing procedure at its meetings as it may decide provided, however, that no such rule is inconsistent with any provision of this Agreement.

12. ACCOUNTING FOR PROFITS; REPORTING OBLIGATIONS

(a) Within thirty (30) days following the end of each calendar quarter, Teach Away shall calculate the Royalty Fees and any Additional Fees for such three (3) month period and shall remit the Royalty Fees and any Additional Fees attributable to such quarter to OISE together with a statement which shall include the following information:

(i) The names of all Participants then currently enrolled in the Courses;

(ii) The calculation of the Gross Revenue for such quarterly period; and

(iii) The calculation of the Royalty Fees and any Additional Fees for such quarterly period.

(b) Teach Away shall be required to retain records pertaining to the enrolment of Participants in the Courses for a period of five (5) years following a Participant's completion of a Course, which records, subject to applicable privacy laws, with which OISE hereby agrees to comply, shall be provided to the Nominee(s) of OISE on the Management Committee in the 30-day period following each anniversary date of this Agreement.

13. REPRESENTATIONS AND WARRANTIES

(a) ***Of Teach Away.*** Teach Away hereby represents and warrants as follows:

(i) that it has all necessary rights and powers to enter into and perform its obligations under this Agreement;

(ii) that the execution, delivery and performance by Teach Away of this Agreement has been duly authorized by all necessary corporate action on the part of Teach Away;

(iii) that this Agreement constitutes a legal, valid and binding obligation of Teach Away, enforceable against Teach Away in accordance with its terms, except as enforcement may be limited by bankruptcy, insolvency and other laws affecting the rights of creditors generally and except that equitable remedies may be granted only in the discretion of a court of competent jurisdiction;

(iv) that the Teach Away Work will be completed in a professional manner conforming to generally accepted practices in its industry;

(v) that the Teach Away Work and Teach Away's contributions to the Courses (including the Existing Course) do not and will not infringe any third party intellectual property rights, including without limitation patents, trademarks, copyrights, trade secrets or any other proprietary or other right of any third party;

(vi) that the execution and delivery of this Agreement by Teach Away and the fulfilment by Teach Away of its obligations will not contravene or violate or result in a breach or a default under or give rise to a right of termination, amendment or cancellation or the acceleration of any obligations of Teach Away under any applicable law; any judgment, order, writ, injunction or decree of any regulatory authority having jurisdiction over Teach Away; the articles, by-laws or any resolutions of the board of directors or shareholders of Teach Away; or the provisions of any other contract or agreement to which Teach Away is a party or by which it is bound.

(b) ***Of OISE.*** OISE hereby represents and warrants as follows:

(i) that it has all necessary rights and powers to enter into and perform its obligations under this Agreement;

(ii) that the execution, delivery and performance by OISE of this Agreement has been duly authorized by all necessary action on the part of OISE;

(iii) that this Agreement constitutes a legal, valid and binding obligation of OISE, enforceable against OISE in accordance with its terms, except as enforcement may be limited by bankruptcy, insolvency and other laws affecting the rights of creditors generally and except that equitable remedies may be granted only in the discretion of a court of competent jurisdiction;

(iv) that the OISE Work will be completed in a professional manner conforming to generally accepted practices in the field of university-level educational course development and delivery;

(v) that the OISE Work does not and will not infringe any third party intellectual property rights, including without limitation patents, trademarks, copyrights, trade secrets or any other proprietary or other right of any third party; and

(vi) that the execution and delivery of this Agreement by OISE and the fulfilment by OISE of its obligations will not contravene or violate or result in a breach or a default under or give rise to a right of termination, amendment or cancellation or the acceleration of any obligations of OISE under any applicable law; any judgment, order, writ, injunction or decree of any regulatory authority having jurisdiction over OISE; the articles, by-laws or any resolutions of the board of directors of OISE; or the provisions of any other contract or agreement to which OISE is a party or by which it is bound.

14. INDEMNIFICATION

(a) OISE shall indemnify and save harmless Teach Away and its directors, officers, employees and agents from and against all manner of Claims which may be brought against, suffered, sustained or incurred either directly or indirectly for or by reason of any act, neglect or default of OISE in respect of the obligations of OISE under this Agreement, including the carrying out of the OISE Work, or by reason of any misrepresentation or breach by OISE of any warranty, covenant or agreement made or contained in this Agreement, but excluding the extent to which any Claims result from Teach Away's negligence or any breach of its obligations, representations or warranties.

(b) Teach Away shall indemnify and save harmless OISE and its directors, officers, employees and agents from and against all manner of Claims which may be brought against, suffered, sustained or incurred either directly or indirectly for or by reason of any act, neglect or default of Teach Away in respect of the obligations of Teach Away under this Agreement, including the carrying out of the Teach Away Work, or by reason of any misrepresentation or breach by Teach Away of any warranty, covenant or agreement made or contained in this Agreement, but excluding the extent ot which any Claims result from OISE's negligence or any breach of its obligations, representations or warranties.

15. NO PARTNERSHIP

Nothing in this Agreement shall be construed as constituting a joint venture, partnership, or relationship of principal and agent or employer and employee between Teach Away and OISE or any other relationship between the parties whereby one has express or implied authority over or authority to bind the other.

16. TERM AND TERMINATION

(a) ***Term.*** The term of this Agreement shall commence on the date hereof and shall continue until the earlier of (i) the expiration or termination of all Course Schedules and (ii) the termination of this Agreement by either party in accordance with its terms (the "**Term**"). The term of each Course Schedule shall commence on the effective date specified in that Course Schedule and shall continue for the term

specified in that Course Schedule, subject to earlier termination or renewal in accordance with the terms of this Agreement or as may be specified in such Course Schedule.

(b) ***Renewal of Course Schedules.*** A Course Schedule may be renewed for such further period or periods as the parties may agree in writing.

(c) ***Termination for Material Breach.*** A party may terminate

(i) this Agreement upon the occurrence of a Material Breach by the other party of this Agreement pursuant to Section 1(r)(ii); or

(ii) a Course Schedule upon the occurrence of a Material Breach by the other party of that Course Schedule pursuant to Section 1(r)(i),

which Material Breach has not been cured within ten (10) days after receipt of written notice thereof by the breaching party from the other. The provisions of Sections 16(e) and (f) will apply in the event of such termination.

(d) ***Termination for Bankruptcy.*** This Agreement and any Course Schedules may be terminated by either party immediately and without notice if the other party has made a general assignment for the benefit of its creditors or a proposal or arrangement under the *Bankruptcy and Insolvency Act* (Canada) (or any similar legislation in any other applicable jurisdiction), or a petition is filed against the other party under such legislation, or if the other party shall be declared or adjudicated bankrupt or if a liquidator, trustee in bankruptcy, custodian, receiver, manager, or any other officer with similar power shall be appointed of or for the other party or if the other party shall commit an act of bankruptcy or shall propose a compromise or arrangement or institute proceedings to be adjudged bankrupt or insolvent or consents to the initiation of such appointment or proceedings or admits in writing its inability to pay debts generally as they become due, and the further provisions of this Section 16 will apply.

(e) ***Clauses Surviving Termination.*** Any indemnification, ownership, confidentiality, enforcement and publicity clause in this Agreement, including, for greater certainty, Sections 6, 9, 10, 14, 15, 17 and 18(k), shall survive any termination of this Agreement.

(f) ***IP Rights Upon Termination.*** The parties acknowledge and agree that, upon termination, Section 6(b)(vi) will govern with respect to the Electronic Delivery Files. OISE will retain all ownership and rights in and to the Course Content IP to the extent that same is not required to be destroyed due to it comprising some or all of the Electronic Delivery Files; in this regard, OISE acknowledges and agrees that certain portions of the Course Content IP may be inextricably intermingled with the Electronic Delivery Files and therefore may not be useful to OISE following termination.

17. DISPUTE RESOLUTION

The parties, through the Management Committee, shall make every reasonable effort to resolve any dispute relating to this Agreement. All matters in dispute between the parties in relation to this Agreement that cannot be rectified by and between the Management Committee or otherwise between the parties shall be referred to arbitration before a single arbitrator, if the parties agree upon one, and otherwise to three arbitrators, one to be appointed by each party and a third to be chosen by the first two arbitrators and named before commencement of arbitration. Either party may initiate arbitration within a reasonable time after any dispute hereunder has arisen without resolution by and between the parties by delivering a written demand for arbitration upon the other party. A dispute or controversy submitted to arbitration will not be made the subject matter of any action in any court by any party. The decision of the arbitrator or arbitrators, as the case may be, shall be final and binding on the parties and not subject to appeal or judicial review by either party (except as to questions of law) and such decision will be conclusively deemed to determine the interpretation of this Agreement and the rights and liabilities of the parties in respect of the matter arbitrated. After completion of the arbitration, an action may be initiated by the parties only for the purpose of enforcing the decision of the arbitrator. Any arbitration shall be conducted in accordance with the *Arbitration Act, 1991* (Ontario) and shall take place in Toronto, Ontario.

18. MISCELLANEOUS

(a) ***Plain English.*** This Agreement is intended to be written in plain English. When words or expressions of a general nature are employed herein, it is intended that they be comprehensive, unless the context clearly dictates otherwise.

(b) ***Number and Gender.*** Words importing the singular include the plural and vice versa; and words importing gender include all genders.

(c) ***Headings.*** The Section and paragraph headings contained herein are included solely for convenience, and are not intended to be full or accurate descriptions of the content thereof and shall not be considered part of this Agreement or to affect the interpretation hereof.

(d) ***Currency.*** Unless otherwise indicated, all dollar amounts referred to in this Agreement or any Schedule attached hereto are in Canadian funds.

(e) ***Counterparts.*** This Agreement may be executed in any number of counterparts. Each executed counterpart shall be deemed to be an original. All executed counterparts taken together shall constitute one agreement. To evidence the fact that it has executed this Agreement, a party may send a copy of its executed counterpart to all other parties by facsimile transmission or email, and if sent by email shall be sent in Portable Document File (PDF) format.

(f) ***Recitals.*** The recitals to this Agreement are hereby acknowledged by the parties as being true and correct.

(g) ***Entire Agreement.*** This Agreement, including any and all Schedules attached hereto, is the complete and exclusive statement of the agreement of the parties with respect to the subject matter hereof and supersedes all prior agreements, negotiations and representations, oral or written, between the parties with respect

to the subject matter hereof. This Agreement may not be modified except by a written instrument duly executed by the parties hereto.

(h) ***Neutral Construction.*** The parties to this Agreement agree that this Agreement was negotiated fairly between them at arm's length and that the final terms of this Agreement are the product of the parties' negotiations. Each party warrants and represents that it has sought and received legal counsel of its own choosing with regard to the contents of this Agreement and the rights and obligations affected hereby. The parties agree that the provisions of this Agreement should not be construed against a party or parties on the grounds that the party or parties drafted or was more responsible for drafting the provision(s).

(i) ***Further Assurances.*** Each party, upon receipt of notice from the other party, shall sign (or cause to be signed) all further documents, do (or cause to be done) all further acts, and provide all reasonable assurances as may reasonably be necessary or desirable to give effect to this Agreement.

(j) ***Severability.*** If any provision of this Agreement or any word, phrase, clause, sentence, or other portion thereof should be held to be unenforceable or invalid for any reason, then provided that the essential consideration for entering into this Agreement on the part of any party is not unreasonably impaired, such provision or portion thereof shall be modified or deleted in such manner as to render this Agreement as modified legal and enforceable to the maximum extent permitted under applicable laws.

(k) ***Non-publicity.*** Neither party shall publicize the subject-matter of this Agreement or the Previous Agreements in any way, including without limitation any particulars relating to the Courses, without the prior consent of the other party.

(l) ***Time of the Essence.*** Time is of the essence to the performance of the parties' obligations under this Agreement.

(m) ***Force Majeure.*** Either party shall be excused from delays in performing or from its failure to perform hereunder to the extent that such delays or failures result from causes beyond the reasonable control of such party; provided that, in order to be excused from delay or failure to perform, such party must act diligently to remedy the cause of such delay or failure.

(n) ***No Waiver.*** No delay or omission by either party hereto to exercise any right or power occurring upon any non-compliance or default by the other party with respect to any of the terms of this Agreement shall impair any such right or power or be construed to be a waiver thereof. The terms and conditions of this Agreement may be waived or amended only in writing and only by the party that is entitled to the benefits of the term(s) or condition(s) being waived or amended. A waiver by either of the parties hereto of any of the covenants, conditions, or agreements to be performed by the other shall not be construed to be a waiver of any succeeding breach thereof or of any covenant, condition, or agreement herein contained (whether or not the provision is similar). Unless stated otherwise, all remedies provided for in this Agreement shall be cumulative and in addition to and not in lieu of any other remedies available to either party at law, in equity, or otherwise.

(o) ***Notices.*** Any notice, request, demand, consent or other communication required or permitted to be given hereunder by a party to the other will be in writing and will be deemed validly given if personally delivered or if mailed by registered mail, postage prepaid, or transmitted by e-mail addressed to the receiving party at its address as follows:

(i) In the case of Teach Away, to:

Kesson Group Inc.
324-171 East Liberty Street
Toronto, ON M6K 3P6
Attention: Rene Frey
Email: rene@teachaway.com

(ii) In the case of OISE, to:

Ontario Institute for Studies in Education of the University of Toronto
252 Bloor Street West
Toronto, ON M5S 1V6
Attention: Elisabeth Rees-Johnstone
Email: e.rees.johnstone@utoronto.ca

Any notice so given shall be deemed to have been received on the date on which it was delivered or transmitted by fax or e-mail, or five days following the mailing thereof. In the event of actual or threatened disruption of postal services notice shall not be sent by mail.

(p) ***No Assignment.*** Neither party may assign or sublicense all or any portion of its rights or obligations under this Agreement to a third party without the written consent of the other party.

(q) ***Governing Law.*** This Agreement shall be governed by and construed in accordance with the laws of the Province of Ontario and the federal laws of Canada applicable therein and shall be treated in all respects, as an Ontario contract.

(r) ***Language Usage.*** The parties have required that this Agreement and all documents relating thereto be drawn-up in English. Les parties ont demandé que cette convention ainsi que tous les documents qui s'y rattachent soient rédigés en anglais.

(s) ***Successors and Assigns.*** This agreement shall be binding on the parties hereto, their respective legal representatives, successors, and permitted assigns.

[SIGNATURES ON NEXT PAGE]

IN WITNESS WHEREOF, this Agreement has been executed by the parties as of the date first set out above.

SIGNED, SEALED AND DELIVERED:

KESSON GROUP INC., operating as "Teach Away"

By: _____

Name: Stephen Rene Frey
Title: President

I have authority to bind the corporation

THE GOVERNING COUNCIL OF THE UNIVERSITY OF TORONTO, as represented by the ONTARIO INSTITUTE FOR STUDIES IN EDUCATION, a faculty of the University of Toronto

By: _____

Name: Glen A. Jones
Title: Dean

I have authority to bind the corporation

Tab 2

MAY 7 2025
OISE Continuing & Professional Learning

TeachAway Refund Policy from https://teflonline.teachaway.com/pages/refund-policy



Terms of Service Download from https://secure.teachaway.com/en-ca/policies/terms-of-service#pdterms

Terms of service

Teach Away Professional Development

1. Terms

By accessing the Teach Away professional development courses you agree to be bound by these Terms and Conditions of the Kesson Group Inc. (o/a Teach Away) (hereafter known as "Teach Away", "We" "Us", or "Our"), all applicable laws and regulations, and agree that you are responsible for compliance with any applicable local laws. If you do not agree with any of these terms, you are prohibited from using or accessing your Teacher Certification Program, TEFL course, or other Professional Development course (including Culturally Responsive Teaching, Digital Learning in the K-8 Classroom, Disciplinary Literacy) and the course materials (hereafter known as the "Course"). Although you have been directed to the Course enrollment website of one of our industry partners ("Provider"), the Course that will become available to you upon enrollment has been developed and is being provided to you by Teach Away. Teach Away contracts with industry partners, including Provider, to make available online, self-directed learning programs like the Course to consumers, customers and employees of such industry partners. The materials contained in this Course and on are protected by applicable copyright and intellectual property laws of Teach Away and/or Provider.

2. User License

Users are granted permission to temporarily download one copy of the materials (information or software) from the Course for personal, non-commercial transitory viewing only. This is the grant of a limited, non-exclusive, non-transferable, royalty-free license exercisable only during the Duration of Access (as hereinafter defined) and is not a transfer of title. Under this limited license you may NOT:
Modify, copy, extract, summarize, distribute or publicly display the Course materials;
use the materials for any commercial purpose;
attempt to decompile or reverse engineer any software contained in or comprising the Course;
remove any copyright or other proprietary notations from the materials; or transfer the materials to another person, "mirror" the materials on any other server, or do any other act in order to display it for multiple beneficiaries per license, for the purposes of education or training (referring to, but not limited to computer monitors, projectors, and TVs).

The limited license being made available to you will automatically terminate if any of these restrictions are violated and may be terminated by Us at any time. Upon terminating your viewing of these materials, or upon the termination of this license, you must destroy any downloaded materials in your possession, whether in electronic or printed format, immediately.

We and/or Provider own or are authorized licensees of all right, title and interest in and to the Course and the contents of the Course materials, as well as any trade names, trademarks, service marks, inventions, copyrights, trade secrets, patents, know-how and other intellectual property rights contained in and/or relating to the Course and the Course materials and the software and systems which make the Course available to you ("Intellectual Property"). Nothing in these Terms and Conditions constitutes a license to Customer to use or resell the Intellectual Property other than as specifically set forth herein.

3. Disclaimer of Warranties and Limitation of Liability

The Course and the Course materials in the Course are provided on an "as is" and "as available" basis. To the maximum extent permitted by applicable law, We make no warranties, expressed or implied, in respect of the operation of the Course and We hereby disclaim all other warranties, including, without limitation, implied warranties or conditions of merchantability, fitness for a particular purpose, or non-infringement of intellectual property or other violation of third party rights. You agree to address any questions or concerns respecting the Course directly with Provider. This includes, without limitation, any concerns you may have about the content, likely results, fitness, quality, accuracy or reliability of the Course or the Course materials. Provider provides to Us and/or approves

all content incorporated into the Course and the Course materials and We do not warrant or make any representations concerning the content, likely results, fitness, quality, accuracy or reliability of the Course and/or the use of the Course materials or otherwise relating to such materials or on any sites linked within the Course or the Course materials. You agree that your enrollment in and use of the Course is at your sole risk. Because some jurisdictions do not allow limitations on implied warranties, or limitations of liability for consequential or incidental damages, these limitations may not apply to you.
We cannot guarantee continuous availability of the Course, availability at a particular time, integrity of data, information or content stored or transmitted via the Internet. We will not be liable for any unauthorized access to, or any corruption, erasure, theft, destruction, alteration or inadvertent disclosure of data, information or content transmitted, received or stored pursuant to your enrolment in and/or use of the Course.

In no event shall We or our subsidiaries or affiliates (and each of their respective employees, agents, directors, officers subcontractors, representatives or suppliers) be liable for any damages (including, without limitation, direct, indirect, incidental, special, liquidated, punitive or consequential damages, including damages for loss of data or profit, or due to business interruption) arising from the use or inability to use the Course or the Course materials even if We, or an authorized representative of Us, have been notified of the possibility of such damage. You further agree that We and our subsidiaries or affiliates (and each of their respective employees, agents, directors, officers subcontractors, representatives or suppliers) shall not be liable to you for any damages of any kind arising from Provider's use or misuse of your personal information. You agree that for any liability related to the Course for which We might, by a court having jurisdiction, be found to be liable for, We shall not be liable or responsible for any amount of damages above the aggregate dollar amount paid by you in respect of your enrollment in the Course or $500.00, whichever is less.

5. Revisions and Errata

The Course materials could include technical, typographical, or photographic errors. We do not warrant that any of the Course materials are accurate, complete or current. We may make changes to the materials contained on its Course at any time without notice. We do not, however, make any commitment to update the Course materials unless and until requested or required by Provider.

6. Links

We have not reviewed all of the websites to which there may be links in the Course materials and We are not responsible for the contents of any such linked website. The inclusion of any link within the Course or the Course materials does not imply endorsement of such website by Us or Provider. Use of any such linked website is at your own discretion and risk.

7. Refund Policy

TEFL, Teacher Certification Program and other Professional Development Courses: These Courses are provided as an "all-in-one" software package, which means that once enrolment fees are paid, admission is final and refunds are not available. Whereas there is no penalty for failing to complete the Course once enrolled, if you do not to complete the Course, you will not be eligible for a refund of any enrolment or other fees paid.

8. Course Expiry

TEFL, Teacher Certification Program and Professional Development Courses: In order to receive Provider's certificate of completion you are required to successfully complete all aspects of the Course (including the final assessment) within the respective Course deadline (hereafter "Duration of Access") of receiving your course login details from Us. If you fail to complete the course within the given Duration of Access, you will not be awarded a certificate of completion and, in accordance with paragraph 7, will not be eligible for a refund.The Course deadlines are as follows:

i. TEFL, Digital Learning in the K-8 Classroom, Digital Literacy: 365 days from the date of enrollment

ii. Culturally Responsive Teaching and all other professional development courses: 90 days from the date of enrollment

9. Terms of Use Modifications

We may revise these terms and conditions of use at any time without notice. By using this website, you are agreeing to be bound by any updated version of these Terms and Conditions.

10. Indemnity

You agree to indemnify, defend and hold harmless Us and our subsidiaries and affiliates and each of their respective officers, directors, employees, shareholders, representatives and agents (each an "indemnified party" and, collectively, "indemnified parties") from and against any and all claims, damages, losses, liabilities, suits, actions, demands, proceedings (whether legal or administrative), and expenses (including, but not limited to, reasonable legal fees) threatened, asserted, or filed by a third party against any of the indemnified parties arising out of or relating to your use of the Course, (ii) any violation by you of these Terms and Conditions.

11. Governing Law

These Terms and Conditions shall be governed by the laws of the Province of Ontario and the federal laws of Canada applicable therein without regard to its conflict of law provisions. You hereby irrevocably attorn to the non-exclusive jurisdiction of the courts of such province. These Terms & Conditions and the transactions contemplated herein are not and never will be subject to the United Nations Convention on the Uniform Sale of goods or the Uniform Computer Information Transactions Act (prepared by the National Conference of Commissioner on Uniform State Laws) as currently enacted by any jurisdiction or as may be codified or amended from time to time by any jurisdiction.

12. Severability

These Terms & Conditions state the entire agreement between you and Us. If any term or condition herein shall be held to be invalid, illegal, unenforceable or in conflict with the law of any jurisdiction, the validity, legality and enforceability of the remaining terms shall not in any way be affected or impaired thereby. You agree with Us that it is our mutual intent that these Terms & Conditions, including without limitation any limitation of liability herein, be enforced as written, but otherwise to the maximum extent allowable by law.

JOB POSTING SERVICES

TERMS & CONDITIONS OF USE (rev. 11/2016)

The following Terms and Conditions of Use are applicable to your use of the job posting services (the “Services”;) offered by Teach Away Inc. (“Teach Away”;) and form a contract between you and Teach Away. These Terms and Conditions of Use apply to all employers, organizations, institutions, companies or other entities, contractors, job seekers, employees and any other people who visit this website and/or make use of the Services (“Users”). By accessing or using the Services, you agree that you have read, understood and agree to be bound by these Terms and Conditions of Use, which also incorporate Teach Away’s Privacy Policy by this reference.

These Terms and Conditions of Use will remain in full force and effect whenever and for so long as you use the Services; provided, however, that Teach Away reserves the right to amend these Terms and Conditions of Use from time to time and may do so by posting an updated version to this web page. You should visit this page periodically to review the most current Terms and Conditions of Use because they are binding on you. Your continued use of the Services will constitute your acceptance of these Terms and Conditions of Use and any such changes. If you do not agree to any of these Terms and Conditions of Use, including as may be amended from time to time, you should not use or otherwise

access the Services. Except as otherwise expressly agreed by Teach Away in writing, these Terms and Conditions are the only terms governing the provision the Services by Teach Away.

1. Services

1.1 You may only use the Services if you are at least eighteen (18) years of age and can form a binding contract with Teach Away. Any use or access to the Services by anyone under 18 is strictly prohibited and in violation of these Terms and Conditions of Use. The Services and its features may be used only by individuals seeking employment and/or employers seeking employees. The Services are not available to any Users previously prohibited from the Services by Teach Away, unless we provide such Users with specific written authorization to re-use the Services. If you use the Services on behalf of a company, organization, institution or other entity, then (a) "you" includes you and that entity, and (b) you represent and warrant that you are an authorized representative of such entity with the authority to bind the entity to these Terms and Conditions of Use, and that you agree to these Terms and Conditions of Use on the entity's behalf. You acknowledge and agree that you are not a competitor of Teach Away and that you will not use the Services for reasons that are in competition with Teach Away or otherwise to replicate some or all of the Services for any reason.

1.2 The Client expressly acknowledges that any Services provided by Teach Away to Users who are employers, organizations, institutions, companies or other entities are provided on a non-exclusive basis, and that Teach Away may provide services which are similar or identical to the Services to other parties, including, but not limited to competitors of User and/or other entities operating in the same or similar industry(ies) and/or jurisdiction(s) as a User.

1.3 By using the Services, you acknowledge and agree that Teach Away does not have control over the quality, timing, or legality of the information uploaded or requested by Users. In addition, you acknowledge and agree that Teach Away does not have control over the integrity, responsibility or actions of employees, job seekers, prospective employees or prospective employers

1.4 In order to use the Services, you must create an account with Teach Away (an "Account"). When creating an Account or uploading information through your Account, you represent and warrant that all information provided will be complete and accurate. Users are solely responsible for the activity that occurs on its Account. You are responsible for maintaining the confidentiality of your Account and password, as applicable. You may not share your password or other Account access information with any other party, temporarily or permanently, and you shall be responsible for all uses of your Account, whether or not authorized. You must notify Teach Away immediately of any breach of security or unauthorized

use of your Account; provided, however, that Teach Away will not be liable for any losses caused by any unauthorized use of an Account.

2. Rules Governing Use of Services

2.1 All Users agree not to engage in any of the following activities pursuant to its use of the Services, all of which are prohibited by Teach Away:

(a) transmit, post, distribute, store or destroy material in violation of any applicable law or regulation, including but not limited to laws or regulations governing the collection, processing, or transfer of personal information, or in breach of Teach Away's Privacy Policy;

(b) take any action that imposes an unreasonable or disproportionately large load on the infrastructure of any website operated by Teach Away;

(c) use any data mining, robots or similar data gathering or extraction methods;

(d) violate or attempt to violate the security of any Teach Away website including attempting to probe, scan or test the vulnerability of a system or network or to breach security or authentication measures without proper authorization;

(e) forge any TCP/IP packet header or any part of the header information in any e-mail or newsgroup posting;

(f) reverse engineer or decompile any parts of any Teach Away website;

(g) aggregate, copy or duplicate in any manner any of the information available from any Teach Away website, including expired job postings;

(h) post any content or material that promotes or endorses false or misleading information or illegal activities, or endorses or provides instructional information about illegal activities or other activities prohibited by these Terms and Conditions of Use, such as making or buying illegal weapons, violating someone's privacy, providing or creating computer viruses or pirating media;

(i) access data not intended for User or logging into a server or account which User is not authorized to access;

(j) post or submit any incomplete, false or inaccurate information or information which does not belong to User;

(k) post content that contains restricted or password-only access pages, or hidden pages or images;

(l) delete or alter any material posted by any other person or entity;

(m) harass, incite harassment or advocate harassment of any group, company, or individual;

(n) attempt to interfere with service to any user, host or network, including, without limitation, via means of submitting a virus to any Teach Away website or through the use of the Services, overloading, “flooding”, “spamming”, “mailbombing” or “crashing”; or

(o) promote or endorse an illegal or unauthorized copy of another person’s copyrighted work.

3. Additional Terms Governing Employer Use of services

3.1 In addition to refraining from the activities set forth in Section 2, with respect to its posting of jobs using the Services, all employers agree to the following additional terms and conditions, and Teach Away reserves the right to delete or otherwise remove any job posting or User content which does not comply herewith or is otherwise not in the best interests of Teach Away:

(a) Employers are solely responsible for the job postings they list using the Services. Teach Away should not be construed, considered or deemed to be an employer in respect of your posting of available jobs using the Services and Teach Away will not be responsible for any employment decisions, for whatever reason, made by any entity posting jobs pursuant to its use of the Services.

(b) Employers agree that no job posting may contain any of the following:

(i) hyperlinks, unless specifically agreed to or authorized by Teach Away;
(ii) names, logos, trademarks or other references to other parties that are unrelated to or unaffiliated with the job posting and/or the employer, including companies, organizations, educational institutions, cities or other municipalities, states, provinces and countries; (iii) more than one job or job description, more than one location, or more than one job category, unless specifically agreed to or authorized by Teach Away;
(iv) inaccurate, false or misleading information of any kind; or
(v) material or links to material that exploit people in any manner (including sexually, violently or with respect to the provision of labour) or solicits information from individuals under the age of 18;
(c) Employers also agree that the Services shall not be used:

(i) to post jobs in a manner that does not comply with applicable local, national and international laws, including but not limited to laws relating to labor and employment, equal employment opportunity and employment eligibility

requirements, data privacy, data access and use, and intellectual property;
(ii) to post jobs that require citizenship of any particular country or lawful permanent residence in a country as a condition of employment, unless otherwise required in order to comply with applicable law, regulations, executive order, or federal, provincial, state or local government contracts;
(iii) to post jobs that include any screening requirement or criterion in connection with a job posting where such requirement or criterion is not an actual and legal requirement of the posted job;
(iv) to post jobs or other advertisements for competitors of Teach Away or post jobs or other content that contains links to any site competitive with Teach Away;
(v) to sell, promote or advertise products or services;
(vi) to endorse or promote a particular religion, political party, political agenda, political position or issue; or
(vii) for any unlawful purpose or any illegal activity, or post or submit any content or job posting that is defamatory, libelous, implicitly or explicitly offensive, vulgar, obscene, threatening, abusive, hateful, racist, discriminatory, of a menacing character or likely to cause annoyance, inconvenience, embarrassment, anxiety or could cause harassment to any person or include any links to pornographic, indecent or sexually explicit material of any kind, as determined in the discretion of Teach Away.
(d) Employers further agree, in respect of the hiring of individuals in respect of any job posting made pursuant to its use of the Services, to:

(i) provide a safe working environment for all hired employees in accordance with the laws of the User's jurisdiction;
(ii) ensure that hired employees have the resources necessary to carry out the duties required of their employment, including but not limited to the provision of adequate support (including, but not limited to, assistance with establishing bank accounts) and the provision of such other services and support that may reasonably be required by employees in the fulfillment of their obligations to the User;
(iii) if housing is provided for pursuant to any contract entered into between User and an employee, User shall provide or arrange safe and adequate accommodations and the necessary amenities to the employee;
(iv) provide all hired employees, at the User's expense, with legal work permits or visas, as required;
(v) register all hired employees with the local immigration office, trade bureau or employment office, as may be applicable and/or required by local or applicable law, in a timely manner and at the User's expense;
(vi) comply with all applicable and local laws, including employment standards and labour relations laws (including, where applicable, contributions to public pension funds, health care contributions, paid vacation days, paid sick days and income and other applicable taxes), human rights, tax and health and safety legislation;
(vii) provide or make available or cause to be provided or made available to Teach Away all information, documents, materials and other information, which

are reasonably required by Teach Away in order to assess the User, the positions posted using the Services and to otherwise provide the Services, including, but not limited to: lists and descriptions of positions, details regarding working conditions, copies of any contract that prospective employees will be required to enter with User and a job description and full contact information for the individual(s) acting on behalf of User in interviewing and hiring prospective employees; and
(viii) promptly notify Teach Away in writing of any material changes, actual, contemplated or threatened, in the positions posted, the requirements of employees and with respect to the working conditions, and any other matter which may reasonably affect a prospective employee, whether or not yet hired by User.

4. User Content

4.1 By making any content (including job postings) available through your use of the Services, you hereby grant the following license to Teach Away, which Teach Away may exercise solely in connection with its provision of the Services, directly or directly: a worldwide, irrevocable, perpetual, non-exclusive, transferable, royalty-free license, with the right to sublicense, use, view, copy, adapt, modify, distribute, license, sell, transfer, publicly display, publicly perform, transmit, stream, broadcast and otherwise exploit such content. Teach Away does not claim any ownership rights in any User's content and nothing in these Terms and Conditions of Use will be deemed to restrict any rights that you may have to use and exploit any of your own content.

4.2 You acknowledge and agree that you are solely responsible for all content that you make available pursuant to your use of the Services. Accordingly, you represent and warrant that: (i) you are either the sole and exclusive owner of all content that you make available pursuant to your use of the services or you have all rights, licenses, consents and releases that are necessary to grant to Teach Away and to the rights in such content, as contemplated under these Terms and Conditions of Use; and (ii) neither your content nor your posting, uploading, publication, submission or transmittal of such content, through or by means of the Services or otherwise will infringe, misappropriate or violate a third party's patent, copyright, trademark, trade secret, moral rights or other intellectual property rights, or rights of publicity or privacy, or result in the violation of any applicable law or regulation and you agree to indemnify and hold Teach Away harmless for any such claims of third parties.

5.Paid Services

5.1 The Services may be provided to you for a fee or other charge as may be set forth in any sales order in respect of such aspects between you and Teach Away. Where you commit to use such paid features of the Services, you agree to the

pricing and payment terms for the applicable Service, as we may update them from time to time.

6. Links

6.1 You acknowledge and agree that the Teach Away website used to provide the Services may contain links to third-party websites or resources. You acknowledge and agree that Teach Away is not responsible or liable for: (i) the availability or accuracy of such websites or resources to Users or otherwise; or (ii) the content, products, or services on or available from such websites or resources. Links to such websites or resources do not imply any endorsement by Teach Away of such websites or resources or the content, products, or services available from such websites or resources.

7. Personal Information

7.1 Users acknowledge and agree that Teach Away may receive personal information relating to individual job candidates ("Personal Information") pursuant to its offering of the Services and that Teach Away has a duty to maintain the confidentiality of such information and to use it only for specific and limited purposes, including pursuant to the *Personal Information Protection and Electronic Documents Act* (Ontario), the Teach Away Privacy Policy and, where applicable, the EU General Data Protection Regulation (GDPR). Accordingly, employer Users agree to hold all Personal Information that it may receive from individual job candidates secure and will comply with all applicable laws and regulations relating to the protection and privacy of the Personal Information and Users will not use or disclose any Personal Information to any third party whatsoever other than to carry out the Users obligations or as otherwise permitted by applicable law.

8. Relationship of the Parties

8.1 Teach Away performs the Services as an independent contractor and nothing shall constitute or be deemed to create a partnership, joint venture or principal and agent relationship between Teach Away and a User and neither Users nor Teach Away will have any authority to bind the other. These Terms and Conditions of Use will not impose upon either party any obligations for any losses, debts or other obligations incurred by the other party except as may be expressly set forth herein.

9. Disclaimers, Limitation of Liability and Indemnity

9.1 You acknowledge and agree that Teach Away does not screen or censor job postings posted by employers pursuant to their use of the Services and that, unless otherwise agreed to between a User and Teach Away by a separate

Agreement for recruitment services, Teach Away is not involved in, and does not control any interaction between employers and individual job candidates. Teach Away is not responsible for any content posted by Users, the quality, safety or legality of the jobs posted, the truth or accuracy of job postings, the ability of employers to offer job opportunities to individual candidates or the ability of individual candidates to fill job openings and Teach Away makes no representations or warranties in respect of any job or content posted by any User pursuant to its use of the Services. Teach Away reserves the right in its sole discretion to remove content posted by Users, including job postings, from time to time, however, Teach Away does not assume any obligation to do so and to the extent permitted by applicable law, Teach Away disclaims any liability for failing to take any such action.

9.2 To the fullest extent permitted by applicable law, Teach Away does not warrant that any Teach Away site or the Services will operate error-free or that any Teach Away site or servers are free of computer viruses or other harmful mechanisms. If your use of any Teach Away site or the Services results in the need for servicing or replacing equipment or data or any other costs, Teach Away is not responsible for those costs. All Teach Away sites and, more specifically, the Services, are provided on an “as is” basis without any warranties of any kind. Teach Away, to the fullest extent permitted by applicable law, disclaims all warranties, express or implied, including the warranties of merchantability, fitness for particular purpose and non-infringement. Teach Away makes no warranties about the accuracy, reliability, completeness, or timeliness of its sites, the Services, or the content thereof, including software, text, graphics, and links.

9.3 You acknowledge and agree that: (a) Teach Away does not operate or control the internet and that (i) viruses, worms, trojan horses, and other undesirable data or software, or (ii) unauthorized users (e.g., hackers) may attempt to obtain access to and damage your data, websites, computers, or networks or those of the users; (b) Teach Away will not be responsible for any of the foregoing activities; (c) you are solely responsible for the security and integrity of your data and systems; and (d) no advice or information, whether oral or written, obtained from Teach Away or through its provision of the Services will create any warranty not expressly made herein.

9.4 Teach Away cannot and does not confirm that each User is who they claim to be and because we do not and cannot be involved in User-to-User dealings or control the behavior of Users, in the event that you have a dispute with one or more Users, to the fullest extent permitted by applicable law, you release Teach Away and its affiliates and their respective directors, officers, agents and employees from all claims, demands and damages of every kind and nature, known and unknown, suspected and unsuspected, disclosed and undisclosed, arising out of or in any way connected with such disputes.

9.5 To the fullest extent permitted by applicable law, in no event shall Teach Away, its officers, directors, agents, contractors or any third parties mentioned on any Teach Away site or pursuant to the provision of the Services be liable for any damages whatsoever (including, without limitation, incidental and consequential damages, lost profits, or damages resulting from lost data, lost employment opportunity or business interruption) resulting from the use or inability to use any Teach Away site and/or the Services, whether based on warranty, contract, tort, or any other legal theory, and whether or not Teach Away is advised of the possibility of such damages.

9.6 To the fullest extent permitted by applicable law, the maximum liability of Teach Away arising out of or in connection with any Teach Away site or your use of the Services, regardless of the cause of action (whether in contract, tort, breach of warranty or otherwise), will not exceed $100.

9.7 Each User who is an employer acknowledges and agrees that Teach Away is not responsible in law or otherwise for any individual job candidate or for any of the conduct, actions or failure to act of any job candidate, and Teach Away shall in no way be responsible for any claim by a User relating to or arising from the employment, conduct, actions or failure to act of any individual, including if such circumstances relate to the mental stability, suitability, character, experience, education background, criminal background, employment history, work status, qualifications, personal circumstances or personality traits of such individual.

9.8 You agree to defend, indemnify, and hold harmless Teach Away, its affiliates, and their respective officers, directors, employees and agents, from and against any claims, actions or demands, including without limitation reasonable legal and accounting fees, alleging or resulting from: (i) any content or other material you post pursuant to your use of the Services (including job postings); (ii) your use of the Services; or (iii) your breach of these Terms and Conditions of Use.

10. Dispute Resolution

10.1 If any dispute arises between the parties relating to the construction or application of the Agreement or the rights, duties or obligations of either party to the Agreement (a “Dispute”), the Parties shall act in good faith an effort to resolve the Dispute. To this end, they shall consult and negotiate with each other, in good faith and understanding of their mutual interests, to reach a just and equitable solution satisfactory to the parties

10.2 Whether or not consultation or negotiation contemplated by Section 10.1 has taken place, prior to the initiation of arbitration in respect of a Dispute pursuant to Section 10.3, the initiating party shall give written notice to the other party that it wishes to have a Dispute resolved. Such initial notice must generally describe the nature of the Dispute in sufficient detail to identify the issues and conflicting positions. Within fifteen (15) business days of giving such initial

notice, a senior level employee designated by Teach Away with authority to settle the Dispute shall meet (which meeting may be held by teleconference or other electronic means) with a senior level employee designated by the Client with authority to settle the Dispute, and such persons shall act in good faith and endeavour to reach a mutually satisfactory resolution to the Dispute, and, if resolved, the such resolution shall be put in writing and shall be binding on the parties upon the execution of such written resolution.

10.3 If a Dispute is not resolved by the procedures in forth in Sections 10.1 and 10.2, then either party may initiate private arbitration proceedings. Such arbitration will be conducted by a single arbitrator who will be appointed by agreement between the parties or, if the parties cannot agree on an arbitrator within thirty (30) days, such arbitrator will be appointed by a judge of the Superior Court of Justice of Ontario, upon the application of either party to such court and such judge may act as such arbitrator, if he or she so desires. Unless otherwise agreed to by the parties, the arbitration shall be held in the City of Toronto, Ontario, Canada. The procedure to be followed shall be agreed to by the parties or, if no such agreement is reached, determined by the arbitrator. Any arbitration must proceed in accordance with the provisions of the Arbitration Act, 1991 (Ontario). The decision arrived at by the arbitrator will be final and binding on the parties and no appeal shall lie therefrom. Judgment upon the award rendered by the arbitrator may be entered in any court having jurisdiction.

11. Notice

11.1 Any notice or other document required or permitted to be given hereunder to any of the Parties must be in writing mailed by registered mail, courier or transmitted by fax or by email to the parties at their respective addresses first set forth in the Agreement, or at such other address as the party to whom such notice is to be given may have designated. Any notice which is mailed will be deemed to have been given on the fifth (5th) business day following the date of the mailing, or if delivered or transmitted by courier, fax or email, on the date of actual delivery or transmission (or if such a day is not a business day, on the next business day).

12. Assignment

12.1 You may not assign or transfer these Terms and Conditions of Use, by operation of law or otherwise, without the prior written consent of Teach Away, which consent may be delayed or withheld by Teach Away in its sole discretion. Any attempt by you to assign or transfer these Terms and Conditions of Use, without such consent, will be null and of no effect. Teach Away may assign or transfer these Terms and Conditions of Use, in its sole discretion, without restriction.

13. Termination

13.1 Teach Away reserves the right, at its sole discretion, to pursue all of its legal remedies, including but not limited to removal of your content from any Teach Away website and immediate termination of your Account or your ability to access the Services, upon any breach by you of these Terms and Conditions of Use or if Teach Away is unable to verify or authenticate any information you submit to Teach Away or who engage in the unauthorized posting, reproduction, copying, distribution, modification, public display or public performance of copyrighted works of third parties or who otherwise infringe upon the intellectual property rights of any third parties.

14. Termination

14.1 Continuing Obligations. Notwithstanding the termination of a User's Account for its violation of these Terms and Conditions or Use or otherwise, such action shall not relieve the parties of any obligations that, by their nature, survive such termination, including any claims pertaining to warranties, indemnities, and obligations with respect to confidential information or Personal Information

14.2 Controlling Law and Jurisdiction. These Terms and Conditions of Use and any action related thereto will be governed by the laws of the Province of Ontario and the laws of Canada applicable therein, without regard to conflicts of law provisions. The exclusive jurisdiction and venue of any action, including those to prevent the actual or threatened infringement, misappropriation or violation of a party's copyrights, trademarks, trade secrets, patents or other intellectual property rights will be the provincial courts of Ontario located in the city of Toronto, Ontario, and each of the parties hereto waives any objection to jurisdiction and venue in such courts.

14.3 Copyright and Trademarks. All trademarks, service marks, logos, trade names and any other proprietary designations of Teach Away used in respect of its websites or the provision of the Services are trademarks or registered trademarks of Teach Away and may not be used or reproduced by any User without the express written consent of Teach Away. Any other trademarks, service marks, logos, trade names and any other proprietary designations used in respect of its websites or the provision of the Services are the trademarks or registered trademarks of their respective parties.

14.4 Other. The failure of Teach Away to enforce any right or provision of these Terms and Conditions of Use will not constitute a waiver of future enforcement of that right or provision. The waiver of any such right or provision will be effective only if in writing and signed by a duly authorized representative of Teach Away. Except as expressly set forth in these Terms and Conditions of Use, the exercise by either party of any of its remedies under these Terms and Conditions of Use will be without prejudice to its other remedies under these Terms and Conditions

of Use or otherwise. If for any reason a court of competent jurisdiction finds any provision of these Terms and Conditions of Use invalid or unenforceable, that provision will be enforced to the maximum extent permissible and the other provisions of these Terms and Conditions of Use will remain in full force and effect. These Terms and Conditions of Use shall be binding on the parties hereto, their respective legal representatives, successors and permitted assigns.

Tab 3

From: Diane Pedreira <diane@pluribustechnologies.com>
Date: Wednesday, February 12, 2025 at 4:43 PM
To: Michael Cassidy <michael.cassidy@utoronto.ca>
Cc: Michelle Morgan <michelle@teachaway.com>, Hanadi Abdullah <hanadi.abdullah@utoronto.ca>
Subject: RE: [External] Fwd: Follow-up on Outstanding Payments & Invoices

You don't often get email from diane@pluribustechnologies.com. Learn why this is important

Hi Michael,

Apologies as I haven't been able to respond to you sooner.

On December 17th, 2024, Pluribus Technologies Corp. and its subsidiaries, including Kesson Group inc. ("Kesson" and collectively the "Applicants") were granted an Initial Order under the Companies Creditors Arrangement Act (Canada) (the "CCAA"). Pursuant to the Initial Order (a copy is attached for reference), the Court imposed a stay of all proceedings in respect of the Applicants up to and including March 15, 2025. The stay of proceedings applies to any payment for services owing prior to the date of the Initial Order, and all rights and remedies of any persons against any of the Applicants are also stayed and suspended during the Stay Period.

On December 20th, 2024, the University of Toronto (via ar.financialservices@utoronto.ca) was notified by B. Riley Farber acting as Monitor for Pluribus Technologies with the attached Notice to Creditors.

We are in receipt of the invoices stated below requesting payment. We are unable to pay this amount at this time pursuant to the terms of the Initial Order, as the amounts owing under such invoices are pre-filing amounts, which are stayed pursuant to the Initial Order. We note that Kesson intends to make payments to the University of Toronto for royalty amounts owed after the date of the Initial Order in accordance with its terms.

We truly value our partnership with the University of Toronto and appreciate your patience as we work through this process. We remain committed to finding a path forward and are open to discussing any concerns you may have. If you would like to discuss this further, I am happy to set up a call at your convenience.

Best,

Diane Pedreira
President | **Pluribus Technologies**
C: (647)[redacted]
E: diane@pluribustechnologies.com | W: pluribustechnologies.com

pluribus
TECHNOLOGIES

---------- Forwarded message ---------
From: **Michael Cassidy** <michael.cassidy@utoronto.ca>
Date: Wed, Feb 12, 2025 at 12:05 PM
Subject: Re: Follow-up on Outstanding Payments & Invoices
To: Hanadi Abdullah <hanadi.abdullah@utoronto.ca>, Michelle Morgan <michelle@teachaway.com>

Hi Michelle, I hope all is well!

Just following up on this. Do you foresee any issues here – please advise 😊

Thanks!

MICHAEL CASSIDY
Associate Director

Continuing & Professional Learning

Ontario Institute for Studies In Education
University of Toronto

Michael.Cassidy@utoronto.ca
[redacted]

From: Hanadi Abdullah <hanadi.abdullah@utoronto.ca>
Date: Friday, January 31, 2025 at 1:22 PM
To: Michelle Morgan <michelle@teachaway.com>
Cc: Michael Cassidy <michael.cassidy@utoronto.ca>
Subject: Follow-up on Outstanding Payments & Invoices

Dear Michelle,

I trust this email finds you well.

I am following up on my previous email from November 27, 2024, regarding the following overdue payments:

Invoice #	*Date*	*Project*	*Amount*	*Paid Date*
K17-11-461	18-Apr-23	TEFL Postage Recovery Sep 2022 - Feb 2023 CAD	$ 2,475.84	overdue 181 days
K17-490	1-Jun-24	TEFL Online royalties March-May 2024 CAD	$ 75,255.92	overdue 91 days
K17-494	31-Aug-24	TEFL Online royalties June - August 2024 CAD	$ 65,203.71	overdue 91 days
		Total Outstanding Amount:	$ 142,935.47	
	due December	TEFL Online royalties September 2024 - November 2024 CAD	report unsubmitted	unpaid

Additionally, as highlighted in blue in the above table, the quarterly report for September to November 2024 (due in December) has not yet been submitted. As a result, a fourth invoice is pending issuance.

Kindly provide an update on the status of these payments by February 11. Let me know if a meeting would be beneficial to discuss this further or clarify any questions.

Your prompt attention to this matter would be greatly appreciated.
Thank you,
Hanadi

DEFY GRAVITY

HANADI ABDULLAH
Senior Program Manager

OISE Continuing &
Professional Learning
University of Toronto
252 Bloor St West
Toronto, ON, M5S 1V6

Mobile: [redacted]
hanadi.abdullah@utoronto.ca

cpl.oise.utoronto.ca

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Reminder: Use caution with links and attachments even when they appear to be sent internally. Addresses can be spoofed and can carry malicious content.
For suspicious emails click Report button or send to: it@pluribustechnologies.com

B | RILEY FARBER

150 York Street, Suite 1600
Toronto, ON, Canada, M5H 3S5
T: 1.855.775.8777
F: 437.561.7080

December 20, 2024

To: ALL KNOWN CREDITORS

Re: PLURIBUS TECHNOLOGIES CORP., PLURIBUS TECHNOLOGIES CANADA INC., CRESCERE FRAMEWORKS, LLC o/a THE LEARNING NETWORK, LOGICBAY CORPORATION, SKILSURE INC., SKILSURE SOFTWARE LIMITED, ICOM PRODUCTIONS INC., PATHWAYS TRAINING AND ELEARNING INC., KESSON GROUP INC., KESSON GROUP HOLDINGS LIMITED, KESSON GROUP UK LIMITED, KESSON GROUP ALBANIA SHPK., KESSON GROUP SERVICES, INC., PLURIBUS USA INC., SOCIAL5, LLC and KNOWLEDGE STRATEGIES, INC. o/a TORTAL TRAINING (collectively, the "Applicants")

You are receiving this notice because the Applicants list you as a creditor in their books and records.

Take notice that on December 17, 2024, the Ontario Superior Court of Justice (Commercial List) (the "**Court**") made an Order (the "**Initial Order**") (Court File No. CV-24-00733415-00CL) granting the Applicants protection pursuant to *Companies' Creditors Arrangement* Act (the "**CCAA**"). B. Riley Farber Inc. was appointed as monitor (the "**Monitor**").

A copy of the Initial order is available on the Monitor's website at: https://brileyfarber.com/engagements/pluribus-technologies-corp/ (the "**Monitor's Website**")

Pursuant to the Initial Order, there is a stay of proceedings until December 27, 2024 (the "**Stay Period**"), which may be extended by the Court from time to time. The Companies will be seeking an extension of the Stay Period at a hearing scheduled for December 23, 2023 (the "**Comeback Motion**"). A copy of any order issued at the Comeback Motion, along with all other materials filed in the CCAA proceedings from time to time, will be made available on the Monitor's Website.

Please note that during the CCAA proceedings, among other relief provided for in the Initial Order:

- *the Applicants shall remain in possession and control of their current and future assets, undertakings and properties of every nature and kind whatsoever, and wherever situate including all proceeds thereof (the "**Property**");*

- *all persons having oral or written agreements with the Applicants, or statutory or regulatory mandates for the supply of goods and/or services are restrained until further Order of the Court from discontinuing, altering, interfering with or terminating the supply of such goods and services as may be required by the Applicants, provided that the normal process or charges for such goods and services received after the date of the Initial Order are paid by the Applicants in accordance with normal payment practices of the Applicants or such other practices as may be agreed upon by the*

B | RILEY FARBER

supplier or service provider and each of the Applicants and the Monitor, or as may be ordered by the Court;

- *all parties are prohibited from commencing or continuing legal action against the Applicants and all rights and remedies of any party against or in respect of the Applicants or their assets are stayed and suspended except with the written consent of the Applicants and the Monitor or leave of the Court.*

To date, no claims procedure has been approved by the Court and creditors are not required to file a proof of claim at this time.

The Monitor can be contacted by email at pluribus@brileyfin.com or by telephone at (437) 294-4600.

Yours very truly,

B. Riley Farber Inc.

B. RILEY FARBER INC.
IN ITS CAPACITY AS COURT-APPOINTED CCAA MONITOR OF
PLURIBUS TECHNOLOGIES ET AL.

PLURIBUS TECHNOLOGIES CORP., PLURIBUS TECHNOLOGIES CANADA INC., CRESCERE FRAMEWORKS, LLC o/a THE LEARNING NETWORK, LOGICBAY CORPORATION, SKILSURE INC., SKILSURE SOFTWARE LIMITED, ICOM PRODUCTIONS INC., PATHWAYS TRAINING AND ELEARNING INC., KESSON GROUP INC., KESSON GROUP HOLDINGS LIMITED, KESSON GROUP UK LIMITED, KESSON GROUP ALBANIA SHPK., KESSON GROUP SERVICES, INC., PLURIBUS USA INC., SOCIAL5, LLC and KNOWLEDGE STRATEGIES, INC. o/a TORTAL TRAINING (collectively, the "Applicants")

List of Creditors as at December 18, 2024
as submitted by the Applicants
(Unaudited)

Please note the following:
1. This list of creditors has been prepared from information contained in the books and records of Lighthouse Immersive Inc. as at July 24, 2023.
2. The amounts included in this list of creditors may not include all un-invoiced amounts, nor have the amounts been adjusted for any amounts that may also be receivable from creditors.
3. This list of creditors has been prepared without admission as to the liability for, or quantum of, any of the amounts shown.
4. To date, a claims procedure has not been approved by the Court, and the creditors are not required to file a statement of account or proof of claim at this point in time.
5. An amount owing of $1 represents an unknown amount.

PLURIBUS TECHNOLOGIES INC.

CREDITOR NAME	ADDRESS	CAD
2338701 Ontario Inc.	59 Rockridge Dr, Whistler, BC, V8E 0A7, Canada	8,750.00
DORSEY & WHITNEY LLP	701 5th Ave, Suite 6100, Seattle, WA, 98104, USA	2,478.99
MCCARTHY PACIFIC CONSULTING GROUP	1438 Richards Street, Unit 2607, Vancouver, BC, V6Z 3B8, Canada	6,195.34
Menzies LLP	Centrum House, 36 Station Rd, Egham Surrey, TW20 9LF, GB	17,385.87
Miller Thomson LLP	40 King Street West, Suite 5800, Toronto, ON, M5H 3S1, Canada	194,310.06
OurProjects LLC	430 Ridge Lane, Alpine, UT, 84004, USA	16,748.58
PricewaterhouseCoopers LLP	18 York Street, Suite 2600, Toronto, ON, M5J 0B2, Canada	365,943.69
Thornton Grout Finnigan	100 Wellington Street West, Suite 3200, PO Box 329, Toronto, ON, M5K 1K7, Canada	237,175.08
Ernst & Young LLP	100 Adelaide St W, Toronto, ON, M5H 1S3, Canada	527,209.04
KAM Consulting Services Inc.	3314 Merion Gardens, Oakville, ON, L6M 5K9, Canada	144,159.75
CNW Group Ltd.	88 QUEENS QUAY WEST, Suite 3000, Toronto, ON, M5J 0B8, Canada	7,762.23
Concur Technologies, Inc.	601 108th Avenue NE, Suite 1000, Bellevue, WA, 98004, USA	1,941.62
Crown Property Management Inc.	123 Edward Street, Toronto, ON, M5G 1E2, Canada	13,166.96
CT Corporation	P.O. Box 4349, Carol Stream, IL, 60197, USA	1,036.35
HI Bob Inc	275 7th Ave., Suite 1705, New York, NY, 10001, USA	10,595.60
International Deal Blockchain Inc.	1610 - 777 Dunsmuir St, Vancouver, BC, V7Y 1K4, Canada	15,357.38
Jolera Inc	365 Bloor Street East, Second Floor, Toronto, ON, M4W 3L4, Canada	1,493.31
Insurance Inc.	150 King St West, Suite 2401, Toronto, ON, M5H 1J9, Canada	20,074.74
Computershare Governance Services Limited	100 University Ave, 11th Floor, South Tower, Toronto, ON, M4J 2Y1, Canada	2,689.40
National Bank	600 Rue De La Gauchetiere Ouest, WestBureau, Office 1665-8, Montreal, QC, H3B 5B4, Canada	8,750.86
Synap Technologies Ltd	3 Manyhorses Park, Redwood Meadows, AB, T3Z 1A2, Canada	9,416.67
TOTAL		**$ 1,612,641.72**

ICOM PRODUCTIONS INC.

CREDITOR NAME	ADDRESS	CAD
Right Voice Communications	2420 34th Avenue NW, Calgary, AB, T2L 0V2, Canada	1,486.80
1536778 Alberta Ltd.	9259 74th Street, Edmonton, AB, T6B 2B5, Canada	1,216.67
Campbell Business Services Ltd	44 Lake Newell Green SE, Calgary, AB, T2J 3L8, Canada	5,313.00
ELIXR Simulations Association	252-10113 104 St NW, Edmonton, AB, T5J 1A1, Canada	2,625.00
MacKay CEO Forums	319-1641 Lonsdale Avenue, Vancouver, BC, V7M 2J5, Canada	3,955.00
ARC Resources Ltd.	1200-308 4th Avenue SW, Calgary, AB, T2P 0H7, Canada	116,133.72
AnswerNet - Telepartners Call Centre Inc.	5407 Eglinton Avenue West, Suite 103, Toronto, ON, M9C 5K6, Canada	23,652.39
MNP LLP	2000 - 330 5th Avenue SW, Calgary, AB, T2P 0L4, Canada	8,473.17
Everbrave Branding Group Ltd.	1630-150 9th Avenue SW, Calgary, AB, T2P 3H9, Canada	25,813.75
BDO Canada LLP	Unit 100-Royal Centre, 1055 West Georgia Street, PO Box 11101, Vancouver, BC, V6E 3P3, Canada	14,081.39
National Bank	600 Rue De La Gauchetiere Ouest, WestBureau, Office 1665-8, Montreal, QC, H3B 5B4, Canada	45,019.54
TOTAL		**$ 247,770.43**

SOCIAL5, LLC

CREDITOR NAME	ADDRESS	CAD
Bayside Closets	7901 4th St N, Suite 19787, St. Petersburg, FL, 33702, USA	1,352.59
Dad Crafted Decor LLC	3395 Hector Drive, West Valley City, UT, 84119, USA	1,283.57
Solana Recruitment Services	1566 S Wasatch Dr. Salt Lake City. UT. 84108. USA	6,372.61
National Bank	200 Chastain Center Blvd, Suite 200, Kennesaw, GA, 30144, USA	36,699.71
TOTAL		**$ 45,708.48**

KNOWLEDGE STRATEGIES, INC.

CREDITOR NAME	ADDRESS	CAD
Automotive Oil Change Association	2443 Fair Oaks Blvd #1177, Sacramento, CA 95825, USA	2,787.61
Complete Network Services LLC	14 Corporate Woods Blvd, Suite 217, Albany, NY, 12211, USA	2,474.00
Clean Slate Productions, LLC	116 White Branch Ct, Fort Mill, SC, 29715-9756, USA	12,031.48
National Bank	200 Chastain Center Blvd, Suite 200, Kennesaw, GA, 30144, USA	4,306.13
TOTAL		**$ 21,599.22**

KESSEN GROUP SERVICES INC. (USA)

CREDITOR NAME	ADDRESS	CAD
Arizona School Personnel Administrators Association (ASPAA)	PO Box #8016, Glendale, AZ, 85312, USA	1,275.80
TWB Elite Consulting LLC	1651 East 70th Street #246, Shreveport, LA, 71105, USA	5,480.44
Effective Teacher Development	2380 N Riverside Dr, Florence, AZ, 85132, USA	3,320.13
TOTAL		**$ 10,076.37**

THE LEARNING NETWORK

CREDITOR NAME	ADDRESS	CAD
BARR Advisory, P.A.	5647 Suwanee Rd, Fairway, KS, 66205, USA	4,728.29
Simulation Canada	660 Eglinton Ave E, Toronto, ON, M4G 2K0, Canada	4,411.25
National Bank	200 Chastain Center Blvd, Suite 200, Kennesaw, GA, 30144, USA	2,630.12
TOTAL		**$ 11,769.66**

KESSON GROUP INC.

CREDITOR NAME	ADDRESS	CAD
Litmos US, L.P.	2700 Camino Ramon, Suite 400, San Ramon, CA, 945835004, USA	6,768.67
Manhattan College	4513 Manhattan College Parkway, Bronx, NY. 10471, USA	3,261.51
McREL International	4601 DTC BLVD, Suite 500, Denver, CO, 80237, USA	17,834.40
Outreach Corporation	333 Elliott Ave W #500, Seattle, WA, 98119, USA	4,142.46

PowerSchool Canada ULC	4529 Melrose Street, Port Alberni, BC, V9Y 1K7, Canada	1,886.24
University of Toronto	215 Huron Street, 2nd Floor, Toronto, ON, M5S 1A2, Canada	140,520.54
National Bank	600 Rue De La Gauchetiere Ouest, WestBureau, Office 1665-8, Montreal, QC, H3B 5B4, Canada	4,328.62
National Bank	600 Rue De La Gauchetiere Ouest, WestBureau, Office 1665-8, Montreal, QC, H3B 5B4, Canada	28,164.37
BDO Canada LLP	Unit 100-Royal Centre, 1055 West Georgia Street, PO Box 11101, Vancouver, BC, V6E 3P3, Canada	25,270.20
TOTAL		**$ 232,177.01**

PATHWAYS TRAINING AND ELEARNING INC.

CREDITOR NAME	ADDRESS	CAD
Brodie Church Consulting Group	68 Bethune Street, Brockville, ON, K6V 2E2, Canada	1,130.00
Mindfield Consulting Corp.	4543 Frances Street, Burnaby, BC, V5C 2R6, Canada	23,870.12
National Bank	600 Rue De La Gauchetiere Ouest, WestBureau, Office 1665-8, Montreal, QC, H3B 5B4, Canada	1,834.24
TOTAL		**$ 26,834.36**

KESSON GROUP ALBANIA (IN LEK)

CREDITOR NAME	ADDRESS	CAD
Elite Law Office	Rr. Emin Duraku, Pasuria 1/96+1-64, Godina Ap. vjeter, Hyrja 10, Ap 64, Tirane, AL	2,875.12
Genc Boga Boga and Associates Attorneys at Law	40/3 Ibrahim Rugova Street, Tirana, 1019, AL	2,484.10
TOTAL		**$ 5,359.22**

LOGICBAY CORPORATION

CREDITOR NAME	ADDRESS	CAD
Meritor	2135 W Maple Road, Troy, MI, 48084, USA	1,614.21
Aetna	-	26,619.62
Humana Dental	PO Box 4600, Carol Stream, IL, 60197-4600, USA	1,217.36
National Bank	200 Chastain Center Blvd, Suite 200, Kennesaw, GA, 30144, USA	41,244.43
QCC Technologies (P) Ltd	505 World Trade Center, Bangalore, 560055, IN	25,269.52
Rustici Software LLC	210 Gothic Court, Suite 100, Franklin, TN, 37067, USA	14,639.12
TOTAL		**$ 110,604.26**

KESSON GROUP UK LIMITED

CREDITOR NAME	ADDRESS	CAD
Menzies LLP	Centrum House, 36 Station Rd, Egham Surrey, TW20 9LF, GB	3,905.60
Piers Crossland	28 Hillcrest Rd, 7600, Cape Town, GB	5,519.58
TOTAL		**$ 9,425.18**

SKILSURE INC.

CREDITOR NAME	ADDRESS	CAD
Menzies LLP	Centrum House, 36 Station Rd, Egham Surrey, TW20 9LF, GB	4,190.45
BDO Canada LLP	Unit 100-Royal Centre, 1055 West Georgia Street, PO Box 11101, Vancouver, BC, V6E 3P3, Canada	11,808.50
National Bank	600 Rue De La Gauchetiere Ouest, WestBureau, Office 1665-8, Montreal, QC, H3B 5B4, Canada	12,598.66
TOTAL		**$ 28,597.61**

CONSOLIDATED TOTAL **$ 2,362,563.52**

Court File No.: CV-24-00733415-00CL

ONTARIO
SUPERIOR COURT OF JUSTICE
COMMERCIAL LIST

THE HONOURABLE MISTER	)	TUESDAY, THE 17TH
	)	
JUSTICE CAVANAGH	)	DAY OF DECEMBER, 2024

IN THE MATTER OF THE *COMPANIES' CREDITORS ARRANGEMENT ACT*, R.S.C. 1985, c. C-36, AS AMENDED

AND IN THE MATTER OF A PLAN OF COMPROMISE OR ARRANGEMENT OF PLURIBUS TECHNOLOGIES CORP., PLURIBUS TECHNOLOGIES CANADA INC., CRESCERE FRAMEWORKS, LLC o/a THE LEARNING NETWORK, LOGICBAY CORPORATION, SKILSURE INC., SKILSURE SOFTWARE LIMITED, ICOM PRODUCTIONS INC., PATHWAYS TRAINING AND ELEARNING INC., KESSON GROUP INC., KESSON GROUP HOLDINGS LIMITED, KESSON GROUP UK LIMITED, KESSON GROUP ALBANIA SHPK., KESSON GROUP SERVICES, INC., PLURIBUS USA INC., SOCIAL5, LLC and KNOWLEDGE STRATEGIES, INC. o/a TORTAL TRAINING (collectively, the "**Applicants**")

AMENDED AND RESTATED INITIAL ORDER

THIS APPLICATION, made by the Applicants, pursuant to the *Companies' Creditors Arrangement Act*, R.S.C. 1985, c. C-36, as amended (the "**CCAA**") was heard this day by Zoom videoconference.

ON READING the affidavit of Diane Pedreira, sworn December 16, 2024 and the Exhibits thereto (the "**Pedreira Affidavit**"), the pre-filing report of B. Riley Farber Inc. ("**B. Riley**"), in its capacity as proposed monitor of the Applicants (the "**Monitor**"), dated December 16, 2024 (the "**Pre-Filing Report**"), and the first report of the Monitor dated December 19, 2024 (the "**First Report**"), and on being advised that the secured creditors who are likely to be affected by the charges created herein were given notice, and on hearing the submissions of counsel for the

Applicants, counsel for the Monitor, counsel for the directors of the Applicants (the "**Directors' Counsel**"), counsel for the DIP Lender (as defined below), and counsel for National Bank of Canada and National Bank of Canada, New York Branch (together, "**National Bank**"), and such other counsel as were present, no one appearing for any other party although duly served as appears from the affidavit of service of Kim Sellers, sworn December 16, 2024, filed, and on reading the consent of B. Riley to act as the Monitor,

SERVICE

1. **THIS COURT ORDERS** that the time for service of the Notice of Application and the Application Record is hereby abridged and validated so that this Application is properly returnable today and hereby dispenses with further service thereof.

APPLICATION

2. **THIS COURT ORDERS AND DECLARES** that the Applicants are companies to which the CCAA applies.

PLAN OF ARRANGEMENT

3. **THIS COURT ORDERS** that the Applicants shall have the authority to file and may, subject to further order of this Court, file with this Court a plan of compromise or arrangement (hereinafter referred to as the "**Plan**").

POSSESSION OF PROPERTY AND OPERATIONS

4. **THIS COURT ORDERS** that the Applicants shall remain in possession and control of their current and future assets, undertakings and properties of every nature and kind whatsoever, and wherever situate including all proceeds thereof (the "**Property**"). Subject to further Order of

this Court, the Applicants shall continue to carry on business in a manner consistent with the preservation of their businesses (the "**Business**") and Property. The Applicants are authorized and empowered to continue to retain and employ the employees, consultants, independent contractors, agents, experts, accountants, counsel and such other persons (collectively "**Assistants**") currently retained or employed by them, with liberty to retain such further Assistants as they deem reasonably necessary or desirable in the ordinary course of business or for the carrying out of the terms of this Order.

5. **THIS COURT ORDERS** that the Applicants shall be entitled to continue to utilize the banking and cash management system currently in place with National Bank (in such capacity, the "**Cash Management Provider**") as described in the Pedreira Affidavit or replace it with another substantially similar central cash management system (the "**Cash Management System**") and that any present or future bank providing the Cash Management System shall not be under any obligation whatsoever to inquire into the propriety, validity or legality of any transfer, payment, collection or other action taken under the Cash Management System, or as to the use or application by the Applicants of funds transferred, paid, collected or otherwise dealt with in the Cash Management System, shall be entitled to provide the Cash Management System without any liability in respect thereof to any Person (as hereinafter defined) other than the Applicants, pursuant to the terms of the documentation applicable to the Cash Management System, and shall be, in its capacity as provider of the Cash Management System, an unaffected creditor under a Plan with regard to any claims or expenses it may suffer or incur in connection with the provision of the Cash Management System.

6. **THIS COURT ORDERS** that the Applicants, subject to the terms of the Definitive Documents (as defined below) and the Cash Flow Projections (as defined in the DIP Term Sheet

(as defined below)) shall be entitled but not required to pay the following expenses whether incurred prior to or after the date of this Order:

(a) all outstanding and future wages, salaries, employee and pension benefits, vacation pay, expenses, and fees to independent contractors and consultants payable on or after the date of this Order, in each case incurred in the ordinary course of business and consistent with existing compensation policies and arrangements;

(b) the fees and disbursements of any Assistants retained or employed by the Applicants in respect of these proceedings, at their standard rates and charges;

(c) all outstanding credit card liabilities owing by any of the Applicants in respect of any credit card issued by National Bank; and

(d) payment for goods or services actually supplied to the Applicants by third party suppliers prior to the date of this Order if it is determined by the Applicants, with the consent of the Monitor, that the supplier is critical to the Business, ongoing operations of the Applicants, or preservation of the Property, the payment required to ensure ongoing supply and/or services, and such payments are approved in advance by the Monitor or by further Order of the Court.

7. **THIS COURT ORDERS** that, except as otherwise provided to the contrary herein, and subject to the terms of the Definitive Documents, the Applicants shall be entitled but not required to pay all reasonable expenses incurred by the Applicants in carrying on the Business in the ordinary course after this Order, and in carrying out the provisions of this Order, which expenses shall include, without limitation:

(a) all expenses and capital expenditures reasonably necessary for the preservation of the Property or the Business including, without limitation, payments on account of insurance (including directors' and officers' insurance), maintenance and security services; and

(b) payment for goods or services actually supplied to the Applicants following the date of this Order.

8. **THIS COURT ORDERS** that the Applicants shall remit, in accordance with legal requirements, or pay:

(a) any statutory deemed trust amounts in favour of the Crown in right of Canada or of any Province thereof or any other taxation authority which are required to be deducted from employees' wages, including, without limitation, amounts in respect of (i) employment insurance, (ii) Canada Pension Plan, (iii) income taxes; and (iv) all other amounts related to such deductions or employee wages payable pursuant to the *Income Tax Act*, *Canada Pension Plan*, *Employment Insurance Act*, and similar provincial statutes;

(b) all goods and services or other applicable sales taxes (collectively, "**Sales Taxes**") required to be remitted by the Applicants in connection with the sale of goods and services by the Applicants, but only where such Sales Taxes are accrued or collected after the date of this Order, or where such Sales Taxes were accrued or collected prior to the date of this Order but not required to be remitted until on or after the date of this Order, and

(c) any amount payable to the Crown in right of Canada or of any Province thereof or any political subdivision thereof or any other taxation authority in respect of municipal realty, municipal business or other taxes, assessments or levies of any nature or kind which are entitled at law to be paid in priority to claims of secured creditors and which are attributable to or in respect of the carrying on of the Business by the Applicants.

9. **THIS COURT ORDERS** that until a real property lease is disclaimed in accordance with the CCAA, the Applicants shall pay all amounts constituting rent or payable as rent under real property leases (including, for greater certainty, common area maintenance charges, utilities and realty taxes and any other amounts payable to the landlord under the lease) or as otherwise may be negotiated between the Applicants and the landlord from time to time ("**Rent**"), for the period commencing from and including the date of this Order, twice-monthly in equal payments on the first and fifteenth day of each month, in advance (but not in arrears) in the amounts set out in the applicable lease or, with the consent of the Monitor and the DIP Lender, at such other time intervals and dates as may be agreed to between the applicable Applicant(s) and landlord. On the date of the first of such payments, any Rent relating to the period commencing from and including the date of this Order shall also be paid.

10. **THIS COURT ORDERS** that, except as specifically permitted herein or required pursuant to the terms of the Definitive Documents, the Applicants are hereby directed, until further Order of this Court: (a) to make no payments of principal, interest thereon or otherwise on account of amounts owing by the Applicants to any of its creditors as of this date; (b) to grant no security interests, trust, liens, charges or encumbrances upon or in respect of any of its Property; and (c) to not grant credit or incur liabilities except in the ordinary course of the Business. Notwithstanding

the foregoing, the Applicants shall be entitled to continue to operate the Cash Management System.

RESTRUCTURING

11. **THIS COURT ORDERS** that the Applicants shall, subject to such requirements as are imposed by the CCAA and such covenants as may be contained in the Definitive Documents, have the right to:

(a) permanently or temporarily cease, downsize or shut down any of its business or operations outside of the ordinary course of business, and to dispose of redundant or non-material assets not exceeding $375,000 in any one transaction or $1,000,000 in the aggregate;

(b) terminate the employment of such of its employees or temporarily lay off such of their employees as it deems appropriate; and

(c) pursue all avenues of refinancing of their Business or Property, in whole or part, subject to prior approval of this Court being obtained before any material refinancing,

all of the foregoing to permit the Applicants to proceed with an orderly restructuring of the Business.

12. **THIS COURT ORDERS** that the Applicants shall provide each of the relevant landlords with notice of the Applicants' intention to remove any fixtures from any leased premises at least seven (7) days prior to the date of the intended removal. The relevant landlord shall be entitled to have a representative present in the leased premises to observe such removal and, if the landlord

disputes the Applicants' entitlement to remove any such fixture under the provisions of the lease, such fixture shall remain on the premises and shall be dealt with as agreed between any applicable secured creditors, such landlord and the Applicants, or by further Order of this Court upon application by the Applicants on at least two (2) days notice to such landlord and any such secured creditors. If the Applicants disclaim the lease governing such leased premises in accordance with Section 32 of the CCAA, it shall not be required to pay Rent under such lease pending resolution of any such dispute (other than Rent payable for the notice period provided for in Section 32(5) of the CCAA), and the disclaimer of the lease shall be without prejudice to the Applicants' claim to the fixtures in dispute.

13. **THIS COURT ORDERS** that if a notice of disclaimer is delivered pursuant to Section 32 of the CCAA, then (a) during the notice period prior to the effective time of the disclaimer, the landlord may show the affected leased premises to prospective tenants during normal business hours, on giving the Applicants and the Monitor 24 hours' prior written notice, and (b) at the effective time of the disclaimer, the relevant landlord shall be entitled to take possession of any such leased premises without waiver of or prejudice to any claims or rights such landlord may have against the Applicants in respect of such lease or leased premises, provided that nothing herein shall relieve such landlord of its obligation to mitigate any damages claimed in connection therewith.

NO PROCEEDINGS AGAINST THE APPLICANTS OR THE PROPERTY

14. **THIS COURT ORDERS** that until and including March 15, 2025, or such later date as this Court may order (the "**Stay Period**"), no proceeding or enforcement process in any court or tribunal (each, a "**Proceeding**") shall be commenced or continued against or in respect of the

Applicants or the Monitor, or affecting the Business or the Property, except with the written consent of the Applicants and the Monitor, or with leave of this Court, and any and all Proceedings currently under way against or in respect of the Applicants or affecting the Business or the Property are hereby stayed and suspended pending further Order of this Court.

NO EXERCISE OF RIGHTS OR REMEDIES

15. **THIS COURT ORDERS** that during the Stay Period, all rights and remedies of any individual, firm, corporation, governmental body or agency, or any other entities (all of the foregoing, collectively being "**Persons**" and each being a "**Person**") against or in respect of the Applicants or the Monitor, or affecting the Business or the Property, are hereby stayed and suspended except with the written consent of the Applicants and the Monitor, or leave of this Court, provided that nothing in this Order shall (i) empower the Applicants to carry on any business which the Applicants are not lawfully entitled to carry on, (ii) affect such investigations, actions, suits or proceedings by a regulatory body as are permitted by Section 11.1 of the CCAA, (iii) prevent the filing of any registration to preserve or perfect a security interest, or (iv) prevent the registration of a claim for lien.

NO INTERFERENCE WITH RIGHTS

16. **THIS COURT ORDERS** that during the Stay Period, no Person shall discontinue, fail to honour, alter, interfere with, repudiate, terminate or cease to perform any right, renewal right, contract, agreement, licence or permit in favour of or held by the Applicants, except with the written consent of the Applicants and the Monitor, or leave of this Court.

NO PRE-FILING VS POST-FILING SET OFF

17. **THIS COURT ORDERS** that, other than the Cash Management Provider, no Person shall be entitled to set off any amounts that (a) are or may become due to the Applicants in respect of obligations arising prior to the date hereof with any amounts that are or may become due from the Applicants in respect of obligations arising on or after the date of this Order; or (b) are or may become due from the Applicants in respect of obligations arising prior to the date hereof with any amounts that are or may become due to the Applicants in respect of obligations arising on or after the date of this Order, in each case without the consent of the Applicants and the Monitor, or leave of this Court.

CONTINUATION OF SERVICES

18. **THIS COURT ORDERS** that during the Stay Period, all Persons having oral or written agreements with the Applicants or statutory or regulatory mandates for the supply of goods and/or services, including without limitation all computer software, communication and other data services, centralized banking services, payroll services, insurance, transportation services, utility or other services to the Business or the Applicants, are hereby restrained until further Order of this Court from discontinuing, altering, interfering with or terminating the supply of such goods or services as may be required by the Applicants, and that the Applicants shall be entitled to the continued use of their current premises, telephone numbers, facsimile numbers, internet addresses and domain names, provided in each case that the normal prices or charges for all such goods or services received after the date of this Order are paid by the Applicants in accordance with normal payment practices of the Applicants or such other practices as may be agreed upon by the supplier or service provider and each of the Applicants and the Monitor, or as may be ordered by this Court.

NON-DEROGATION OF RIGHTS

19. **THIS COURT ORDERS** that, notwithstanding anything else in this Order, no Person shall be prohibited from requiring immediate payment for goods, services, use of lease or licensed property or other valuable consideration provided on or after the date of this Order, nor shall any Person be under any obligation on or after the date of this Order to advance or re-advance any monies or otherwise extend any credit to the Applicants. Nothing in this Order shall derogate from the rights conferred and obligations imposed by the CCAA.

PROCEEDINGS AGAINST DIRECTORS AND OFFICERS

20. **THIS COURT ORDERS** that during the Stay Period, and except as permitted by subsection 11.03(2) of the CCAA, no Proceeding may be commenced or continued against any of the former, current or future directors or officers of the Applicants with respect to any claim against the directors or officers that arose before the date hereof and that relates to any obligations of the Applicants whereby the directors or officers are alleged under any law to be liable in their capacity as directors or officers for the payment or performance of such obligations, until a compromise or arrangement in respect of the Applicants, if one is filed, is sanctioned by this Court or upon further Order of this Court.

DIRECTORS' AND OFFICERS' INDEMNIFICATION AND CHARGE

21. **THIS COURT ORDERS** that the Applicants shall indemnify its directors and officers against obligations and liabilities that they may incur as directors or officers of the Applicants after the commencement of the within proceedings, except to the extent that, with respect to any officer or director, the obligation or liability was incurred as a result of the director's or officer's gross negligence or wilful misconduct.

22. **THIS COURT ORDERS** that the directors and officers of the Applicants shall be entitled to the benefit of and are hereby granted a charge (the "**Directors' Charge**") on the Property, which charge shall not exceed an aggregate amount of $375,000, as security for the indemnity provided in paragraph 21 of this Order. The Directors' Charge shall have the priority set out in paragraphs 39 and 41 herein.

23. **THIS COURT ORDERS** that, notwithstanding any language in any applicable insurance policy to the contrary, (a) no insurer shall be entitled to be subrogated to or claim the benefit of the Directors' Charge, and (b) the Applicants' directors and officers shall only be entitled to the benefit of the Directors' Charge to the extent that they do not have coverage under any directors' and officers' insurance policy, or to the extent that such coverage is insufficient to pay amounts indemnified in accordance with paragraph 21 of this Order.

APPOINTMENT OF MONITOR

24. **THIS COURT ORDERS** that B. Riley is hereby appointed pursuant to the CCAA as the Monitor, an officer of this Court, to monitor the business and financial affairs of the Applicants with the powers and obligations set out in the CCAA or set forth herein and that the Applicants and their respective shareholders, officers, directors, and Assistants shall advise the Monitor of all material steps taken by the Applicants pursuant to this Order, and shall co-operate fully with the Monitor in the exercise of its powers and discharge of its obligations and provide the Monitor with the assistance that is necessary to enable the Monitor to adequately carry out the Monitor's functions.

25. **THIS COURT ORDERS** that the Monitor, in addition to its prescribed rights and obligations under the CCAA, is hereby directed and empowered to:

(a) monitor the Applicants' receipts and disbursements including the management and use of any funds advanced by the DIP Lender to the Applicants under the DIP Term Sheet and the Applicants' compliance with the Cash Flow Projections;

(b) report to this Court at such times and intervals as the Monitor may deem appropriate with respect to matters relating to the Property, the Business, and such other matters as may be relevant to the proceedings herein;

(c) assist the Applicants, to the extent required by the Applicants, in their dissemination, to the DIP Lender and its counsel, on a weekly basis, or as otherwise agreed to by the DIP Lender, of financial and other information as agreed to between the Applicants and the DIP Lender, which may be used in these proceedings including reporting on a basis to be agreed with the DIP Lender or as required pursuant to the Definitive Documents;

(d) advise the Applicants in their preparation of the Applicants' cash flow statements and reporting required by the DIP Lender, which information shall be reviewed with the Monitor and delivered to the DIP Lender and its counsel on a periodic basis, but not less than weekly, or as otherwise agreed to by the DIP Lender or as required pursuant to the Definitive Documents;

(e) assist the Applicants, to the extent required by the Applicants, in their dissemination, to National Bank and the DIP Lender and its counsel of financial and other information as agreed to between the Applicants and National Bank, which may be used in these proceedings including reporting on a basis to be agreed with National Bank;

(f) monitor all payments, obligations and transfers as between the Applicants;

(g) advise the Applicant in its development of the Plan and any amendments to the Plan;

(h) assist the Applicant, to the extent required by the Applicant, with the holding and administering of creditors' or shareholders' meetings for voting on the Plan;

(i) have full and complete access to the Property, including the premises, books, records, data, including data in electronic form, and other financial documents of the Applicants, to the extent that is necessary to adequately assess the Applicants' business and financial affairs or to perform its duties arising under this Order;

(j) be at liberty to engage independent legal counsel or such other persons as the Monitor deems necessary or advisable respecting the exercise of its powers and performance of its obligations under this Order; and

(k) perform such other duties as are required by this Order or by this Court from time to time.

26. **THIS COURT ORDERS** that the Monitor shall not take possession of the Property and shall take no part whatsoever in the management or supervision of the management of the Business and shall not, by fulfilling its obligations hereunder, be deemed to have taken or maintained possession or control of the Business or Property, or any part thereof.

27. **THIS COURT ORDERS** that the Monitor shall not occupy, take control, care, charge, possession or management (separately and/or collectively, "**Possession**") of (or be deemed to take

Possession of) any of the Property that might be environmentally contaminated, might be a pollutant or a contaminant, or might cause or contribute to a spill, discharge, release or deposit of a substance contrary to any federal, provincial or other law respecting the protection, conservation, enhancement, remediation or rehabilitation of the environment or relating to the disposal of waste or other contamination including, without limitation, the *Canadian Environmental Protection Act*, the Ontario *Environmental Protection Act*, the *Ontario Water Resources Act*, or the Ontario *Occupational IIealth and Safety Act* and regulations thereunder (the "**Environmental Legislation**"), provided however that nothing herein shall exempt the Monitor from any duty to report or make disclosure imposed by applicable Environmental Legislation. The Monitor shall not, as a result of this Order or anything done in pursuance of the Monitor's duties and powers under this Order, be deemed to be in Possession of any of the Property within the meaning of any Environmental Legislation, unless it is actually in possession.

28. **THIS COURT ORDERS** that the Monitor shall provide any creditor of the Applicants, and the DIP Lender with information provided by the Applicants in response to reasonable requests for information made in writing by such creditor addressed to the Monitor. The Monitor shall not have any responsibility or liability with respect to the information disseminated by it pursuant to this paragraph. In the case of information that the Monitor has been advised by the Applicants is confidential, the Monitor shall not provide such information to creditors unless otherwise directed by this Court or on such terms as the Monitor and the Applicants may agree.

29. **THIS COURT ORDERS** that, in addition to the rights and protections afforded the Monitor under the CCAA or as an officer of this Court, the Monitor shall incur no liability or obligation as a result of its appointment or the carrying out of the provisions of this Order, save and

except for any gross negligence or wilful misconduct on its part. Nothing in this Order shall derogate from the protections afforded the Monitor by the CCAA or any applicable legislation.

30. **THIS COURT ORDERS** that the Monitor, counsel to the Monitor, counsel to the Applicants and Directors' Counsel shall be paid their reasonable fees and disbursements, in each case at their standard rates and charges, whether incurred prior to, on or subsequent to, the date of this Order by the Applicants as part of the costs of these proceedings. The Applicants are hereby authorized and directed to pay the accounts of the Monitor, counsel for the Monitor, counsel for the Applicants and Directors' Counsel on a weekly basis and, in addition, the Applicants are hereby authorized to pay to the Monitor, counsel to the Monitor, and counsel to the Applicants, retainers in the amounts of $50,000, $30,000, and $50,000, respectively, to be held by them as security for payment of their respective fees and disbursements outstanding from time to time.

31. **THIS COURT ORDERS** that the Monitor and its legal counsel shall pass their accounts from time to time, and for this purpose the accounts of the Monitor and its legal counsel are hereby referred to a judge of the Commercial List of the Ontario Superior Court of Justice.

32. **THIS COURT ORDERS** that the Monitor, counsel to the Monitor, the Applicants' counsel and Directors' Counsel to the shall be entitled to the benefit of and are hereby granted a charge (the "**Administration Charge**") on the Property, which charge shall not exceed an aggregate amount of $750,000, as security for their professional fees and disbursements incurred at the standard rates and charges of the Monitor and such counsel, both before and after the making of this Order in respect of these proceedings. The Administration Charge shall have the priority set out in paragraphs 39 and 41 hereof.

DIP FINANCING

33. **THIS COURT ORDERS** that the Applicants are hereby authorized and empowered to obtain and borrow under a credit facility, on a joint and several basis, under the DIP Term Sheet dated as of December 11, 2024 (the "**DIP Term Sheet**"), between the Applicants, as borrowers and Evergreen Gap Debt Inc., as Agent for itself and on behalf of Evergreen Gap Debt LP (the "**DIP Lender**"), and attached to the Pedreira Affidavit, in order to finance the Applicants' working capital requirements, other general corporate purposes, and capital expenditures, accrued interest and expenses, all in accordance with the Definitive Documents and Cash Flow Projections, provided that borrowings under the DIP Term Sheet shall not exceed the principal amount of $2,500,000 plus interest, fees, and expenses, unless permitted by further Order of this Court.

34. **THIS COURT ORDERS** that the DIP Facility shall be on the terms and subject to the conditions set forth in the Definitive Documents.

35. **THIS COURT ORDERS** that the Applicants are hereby authorized and empowered to execute and deliver such credit agreements, mortgages, charges, hypothecs and security documents, guarantees and other definitive documents (collectively, and including the DIP Term Sheet, the "**Definitive Documents**"), as are contemplated by the DIP Term Sheet or as may be reasonably required by the DIP Lender pursuant to the terms thereof, and the Applicants are hereby authorized and directed to pay and perform all of their indebtedness, interest, fees, liabilities and obligations to the DIP Lender under and pursuant to the DIP Term Sheet and Definitive Documents (collectively, the "**DIP Obligations**") as and when the same become due and are to be performed, notwithstanding any other provision of this Order.

36. **THIS COURT ORDERS** that the DIP Lender shall be entitled to the benefit of and is hereby granted a charge (the "**DIP Lender's Charge**") on the Property, as security for any and all DIP Obligations. The DIP Lender's Charge shall not secure an obligation that exists before this Order is made. The DIP Lender's Charge shall have the priority set out in paragraphs 39 and 41 hereof.

37. **THIS COURT ORDERS** that, notwithstanding any other provision of this Order:

(a) the DIP Lender may take such steps from time to time as it may deem necessary or appropriate to file, register, record or perfect the DIP Lender's Charge or any of the Definitive Documents;

(b) upon the occurrence of an event of default under the Definitive Documents or the DIP Lender's Charge, the DIP Lender, upon five (5) days notice to the Applicants, may exercise any and all of its rights and remedies against the Applicants or the Property under or pursuant to the Definitive Documents and the DIP Lender's Charge, including without limitation, to cease making advances to the Applicants and set off and/or consolidate any amounts owing by the DIP Lender to the Applicants against the obligations of the Applicants to the DIP Lender under the Definitive Documents or the DIP Lender's Charge, to make demand, accelerate payment and give other notices, or to apply to this Court for the appointment of a receiver, receiver and manager or interim receiver, or for a bankruptcy order against the Applicants and for the appointment of a trustee in bankruptcy of the Applicants; and

(c) the foregoing rights and remedies of the DIP Lender shall be enforceable against any trustee in bankruptcy, interim receiver, receiver or receiver and manager of the Applicants or the Property.

38. **THIS COURT ORDERS AND DECLARES** that the DIP Lender shall be treated as unaffected in any Plan filed by the Applicants under the CCAA, or any proposal filed by the Applicants under the *Bankruptcy and Insolvency Act* of Canada (the "**BIA**"), with respect to any advances made under the Definitive Documents.

VALIDITY AND PRIORITY OF CHARGES CREATED BY THIS ORDER

39. **THIS COURT ORDERS** that the priorities of the Directors' Charge, the Administration Charge and the DIP Lender's Charge, (collectively, the "**Charges**") as among them, shall be as follows:

First - Administration Charge (to the maximum amount of $750,000);

Second - DIP Lender's Charge; and

Third - Directors' Charge (to the maximum amount of $375,000).

40. **THIS COURT ORDERS** that the filing, registration or perfection of any of the Charges shall not be required, and that the Charges shall be valid and enforceable for all purposes, including as against any right, title or interest filed, registered, recorded or perfected subsequent to the Charges coming into existence, notwithstanding any such failure to file, register, record or perfect.

41. **THIS COURT ORDERS** that each of the Charges shall constitute a charge on the Property and such Charges shall rank in priority to all other security interests, trusts, liens, charges and encumbrances, claims of secured creditors, statutory or otherwise (collectively, "**Encumbrances**") in favour of any Person.

42. **THIS COURT ORDERS** that except as otherwise expressly provided for herein, or as may be approved by this Court, the Applicants shall not grant any Encumbrances over any Property that rank in priority to, or *pari passu* with, any of the Charges, unless the Applicants also obtain the prior written consent of the Monitor, the DIP Lender and the beneficiaries of the Charges, or further Order of this Court.

43. **THIS COURT ORDERS** that the Charges and the Definitive Documents shall not be rendered invalid or unenforceable and the rights and remedies of the chargees entitled to the benefit of the Charges (collectively, the "**Chargees**") and/or the DIP Lender thereunder shall not otherwise be limited or impaired in any way by (a) the pendency of these proceedings and the declarations of insolvency made herein; (b) any application(s) for bankruptcy order(s) issued pursuant to BIA, or any bankruptcy order made pursuant to such applications; (c) the filing of any assignments for the general benefit of creditors made pursuant to the BIA; (d) the provisions of any federal or provincial statutes; or (e) any negative covenants, prohibitions or other similar provisions with respect to borrowings, incurring debt or the creation of Encumbrances, contained in any existing loan documents, lease, sublease, offer to lease or other agreement (collectively, an "**Agreement**") which binds the Applicants, and notwithstanding any provision to the contrary in any Agreement:

(a) neither the creation of the Charges nor the execution, delivery, perfection, registration or performance of the DIP Term Sheer or the Definitive Documents shall create or be deemed to constitute a breach by any of the Applicants of any Agreement to which it is a party;

(b) none of the Chargees shall have any liability to any Person whatsoever as a result of any breach of any Agreement caused by or resulting from the Applicants entering into the DIP Term Sheet, the creation of the Charges, or the execution, delivery or performance of the Definitive Documents; and

(c) the payments made by the Applicants pursuant to this Order, or the Definitive Documents, and the granting of the Charges, do not and will not constitute preferences, fraudulent conveyances, transfers at undervalue, oppressive conduct, or other challengeable or voidable transactions under any applicable law.

44. **THIS COURT ORDERS** that any Charge created by this Order over leases of real property in Canada shall only be a Charge in the Applicants' interest in such real property leases.

CORPORATE MATTERS

45. **THIS COURT ORDERS** that Pluribus Technologies Inc. ("**Pluribus**") be and is hereby relieved of any obligation to call and hold an annual meeting of its shareholders until further Order of the Court.

RELIEF FROM REPORTING OBLIGATIONS

46. **THIS COURT ORDERS** that the decision by Pluribus to incur no further expenses in relation to any filings, disclosures, core or non-core documents, restatements, amendments to

existing filings, press releases or any other actions (collectively, the "**Securities Filings**") that may be required by any federal, provincial or other law respecting securities or capital markets in Canada, or by the rules and regulations of a stock exchange, including, without limitation, the *Securities Act (Ontario)*, RSO 1990, c S.5 and comparable statutes enacted by other provinces of Canada, the TSX Company Manual and other rules, regulations and policies of the TSX Venture Exchange (collectively, the "**Securities Provisions**"), is hereby authorized, provided that nothing in this paragraph shall prohibit any securities regulator or stock exchange from taking any action or exercising any discretion that it may have of a nature described in section 11.1(2) of the CCAA as a consequence of the Applicants failing to make any Securities Filings required by the Securities Provisions.

47. **THIS COURT ORDERS** that none of the directors, officers, employees, and other representatives of the Applicants nor the Monitor shall have any personal liability for any failure by the Applicants to make any Securities Filings required by the Securities Provisions.

SERVICE AND NOTICE

48. **THIS COURT ORDERS** that the Monitor shall (i) without delay, publish in Globe & Mail a notice containing the information prescribed under the CCAA, (ii) within five business days after the date of this Order, (A) make this Order publicly available in the manner prescribed under the CCAA, (B) send, in the prescribed manner, a notice to every known creditor other than employees and independent contractors who has a claim against any of the Applicants of more than $1000, and (C) prepare a list showing the names and addresses of those creditors and the estimated amounts of those claims, and make it publicly available in the prescribed manner, all in accordance with Section 23(1)(a) of the CCAA and the regulations made thereunder; provided that

the Monitor shall not be required to make the claims, names and addresses of individual creditors publicly available unless otherwise ordered by this Court.

49. **THIS COURT ORDERS** that the E-Service Guide of the Commercial List (the "**Guide**") is approved and adopted by reference herein and, in this proceeding, the service of documents made in accordance with the Guide (which can be found on the Commercial List website at: https://www.ontariocourts.ca/scj/practice/regional-practice-directions/eservice-commercial/) shall be valid and effective service. Subject to Rule 17.05 this Order shall constitute an order for substituted service pursuant to Rule 16.04 of the *Rules of Civil Procedure*. Subject to Rule 3.01(d) of the *Rules of Civil Procedure* and paragraph 13 of the Guide, service of documents in accordance with the Guide will be effective on transmission. This Court further orders that a Case Website shall be established in accordance with the Guide with the following URL https://brileyfarber.com/engagements/pluribus-technologies-corp/ (the "**Monitor's Website**").

50. **THIS COURT ORDERS** that the Monitor shall create, maintain and update as necessary a list of all Persons appearing in person or by counsel in this proceeding (the "**Service List**"). The Monitor shall post the Service List, as may be updated from time to time, on the Monitor's Website, provided that the Monitor shall have no liability in respect of the accuracy or the timeliness of making any changes to the Service List.

51. **THIS COURT ORDERS** that if the service or distribution of documents in accordance with the Guide is not practicable, the Applicants and the Monitor are at liberty to serve or distribute this Order, any other materials and orders in these proceedings, any notices or other correspondence, by forwarding true copies thereof by prepaid ordinary mail, courier, personal delivery or facsimile transmission to the Applicants' creditors or other interested parties at their

respective addresses as last shown on the records of the Applicants and that any such service or distribution by courier, personal delivery or facsimile transmission shall be deemed to be received on the next business day following the date of forwarding thereof, or if sent by ordinary mail, on the third business day after mailing.

52. **THIS COURT ORDERS** that the Applicants, the Monitor and their respective counsel are at liberty to serve or distribute this Order, any other materials and Orders as may be reasonably required in these proceedings, including any notices, or other correspondence, by forwarding true copies thereof by electronic message to the Applicants' creditors or other interested parties and their advisors. Any such distribution or service shall be deemed to be in satisfaction of a legal or juridical obligation, and notice requirements within the meaning of clause 3(c) of the *Electronic Commerce Protection Regulations*, Reg. 81000-2-175 (SOR/DORS).

COMEBACK MOTION

53. **THIS COURT ORDERS** that the comeback motion shall be heard by a judge of the Ontario Superior Court of Justice (Commercial List) on December 23, 2024 at 9:30 a.m. Comeback Date and any such interested party shall give not less than two (2) business days' notice to the Service List and any other party or parties likely to be affected by the Order sought in advance of the Comeback Date; provided, however, that the Chargees shall be entitled to rely on this Order as granted and on the Charges and priorities set forth in paragraphs 39 and 41 hereof with respect to any fees, expenses and disbursements incurred, as applicable, until the date this Order may be amended, varied or stayed

FOREIGN PROCEEDINGS AND FOREIGN REPRESENTATIVE

54. **THIS COURT ORDERS** that Pluribus and the Monitor be and are each hereby authorized and empowered to act as a foreign representative (the "**Foreign Representative**") in respect of these proceedings for the purpose of having these proceedings recognized and approved in a jurisdiction outside of Canada.

55. **THIS COURT ORDERS** that the Foreign Representative be and is hereby authorized to apply for foreign recognition of these proceedings, as necessary or advisable, in any jurisdiction outside of Canada, including in the United States pursuant to chapter 15 of title 11 of the United States Code, 11 U.S.C. §§ 101-1532, or otherwise.

GENERAL

56. **THIS COURT ORDERS** that the Applicants or the Monitor may from time to time apply to this Court for advice and directions in the discharge of its powers and duties hereunder.

57. **THIS COURT ORDERS** that nothing in this Order shall prevent the Monitor from acting as an interim receiver, a receiver, a receiver and manager, or a trustee in bankruptcy of the Applicants, the Business or the Property.

58. **THIS COURT HEREBY REQUESTS** the aid and recognition of any court, tribunal, regulatory or administrative body having jurisdiction in Canada or in the United States, to give effect to this Order and to assist the Applicants, the Monitor and their respective agents in carrying out the terms of this Order. All courts, tribunals, regulatory and administrative bodies are hereby respectfully requested to make such orders and to provide such assistance to the Applicants and to the Monitor, as an officer of this Court, as may be necessary or desirable to give effect to this

Order, to grant representative status to the Monitor in any foreign proceeding, or to assist the Applicants and the Monitor and their respective agents in carrying out the terms of this Order.

59. **THIS COURT ORDERS** that Pluribus and the Monitor be and are each hereby authorized and at liberty and are each hereby authorized and empowered to apply to any court, tribunal, regulatory or administrative body, wherever located, for the recognition of this Order and for assistance in carrying out the terms of this Order, and that the Monitor and Pluribus is authorized and empowered to act as a representative in respect of the within proceedings for the purpose of having these proceedings recognized in a jurisdiction outside Canada.

60. **THIS COURT ORDERS** that any interested party (including the Applicants and the Monitor) may apply to this Court to vary or amend this Order on not less than seven (7) days' notice to any other party or parties likely to be affected by the order sought or upon such other notice, if any, as this Court may order.

61. **THIS COURT ORDERS** that this Order and all of its provisions are effective *nunc pro tunc* as of 12:01 a.m. Eastern Standard/Daylight Time on the date of this Order, and is enforceable without any need for entry and filing.



IN THE MATTER OF THE *COMPANIES' CREDITORS ARRANGEMENT ACT*, R.S.C. 1985, c.C-36 AS AMENDED

IN THE MATTER OF A PLAN OF COMPROMISE OR ARRANGEMENT OF PLURIBUS TECHNOLOGIES CORP. et al.
Applicants

Court File No.: CV-24-00733415-00CL

ONTARIO
SUPERIOR COURT OF JUSTICE
COMMERCIAL LIST

Proceeding Commenced at
Toronto

AMENDED AND RESTATED INITIAL ORDER
(Dated December 17, 2024)

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Tab 4

TEFL Online Certificate Program – Learner FAQs

Why is the TEFL Online Certificate Program no longer accepting enrolments?

The TEFL Online Certificate Program was previously delivered through a partnership between OISE Continuing & Professional Learning and Teach Away. That agreement has now concluded, and the program is being transitioned to a new program administration model delivered directly by OISE CPL. A newly redeveloped TEFL Online program will launch in Fall 2025.

What if I enrolled but didn't complete the program?

The University of Toronto, as represented by OISE Continuing & Professional Learning, is not continuing the previously delivered TEFL Online Certificate program, and we are not able to provide program access, re-enrolment or program completion under the former delivery model that was managed by Teach Away.

However, if you have questions about your learner record, registration history or future learning options, we invite you to contact our team at: oise.cpl@utoronto.ca.

For payment or refund-related concerns, please contact Teach Away via Pluribus Technologies at: info@pluribustechnologies.com

Can I get a refund for the course?

All enrolment and payment processing was managed by Teach Away (Kesson Group Inc. / Pluribus Technologies), not the University of Toronto. According to Teach Away's published Terms & Conditions that you acknowledged and accepted at the time of your registration and payment, no refunds are issued after enrolment, regardless of whether the course was completed or paused.

If you believe your circumstances are exceptional or you were impacted during the providers' creditor protection process, please direct your inquiry to the former program provider: info@pluribustechnologies.com

Why can't the University of Toronto give me a refund?

The University of Toronto, as represented by OISE CPL, did not receive any payment for this course and was not involved in the financial transaction. Your payment for the course was made to Teach Away. As a result, OISE CPL is not authorized to process or issue refunds.

Can I still get my certificate?

If you successfully completed the program and are waiting for your certificate, please contact: oise.cpl@utoronto.ca.

Only where OISE CPL is able to verify your program completion will a program certificate of completion be issued.

What happens to my learner record?

OISE CPL has securely received all learner records related to the TEFL Online program and will retain these records in accordance with University of Toronto data governance and privacy policies

What if I didn't finish but want to complete in the future?

We are currently developing a renewed and enhanced TEFL Online Certificate Program which will launch in Fall 2025. This program will be fully administered by OISE CPL and will include refreshed content and improved learner support.

You can join our waitlist to be notified when registration opens:
[Insert waitlist link]

Where can I ask more questions?

For questions related to your learner record, your certificate, or future TEFL programming, please contact us at oise.cpl@utoronto.ca

For refund-related concerns, contact: info@pluribustechnologies.com

Tab 5

From: OISE Dean
To: [redacted]
Subject: Re: Formal Demand for Refund – TEFL Certification (OISE / Teach Away)
Date: September 8, 2025 10:01:39 AM

Many thanks for your email, Mr Aders, and for bringing this to our attention. We will review and will be in touch again from the Dean's office.

Best regards
ENW
--
Erica N Walker
Dean
Ontario Institute for Studies in Education
University of Toronto

From: [redacted]
Date: Friday, September 5, 2025 at 9:53 AM
To: Erica Walker <erican.walker@utoronto.ca>
Cc: Joseph Flessa <joseph.flessa@utoronto.ca>, Marcelo Vieta <marcelo.vieta@utoronto.ca>
Subject: Formal Demand for Refund – TEFL Certification (OISE / Teach Away)

[redacted]
important

Dear Dean Erica Walker,

I am writing to formally demand a full refund of the $1,196.00 I paid on January 28, 2025 for the 150-hour TEFL certification with specializations in Business English and Test Preparation.

The University accepted my payment while its contracted provider, Teach Away, was already under financial collapse:

January 23, 2025 – Pluribus Technologies Corp. (Teach Away's parent company) publicly announced it was entering restructuring and a court-supervised sale process.

January 28, 2025 I paid the University of Toronto $1,196.00 in reliance on its reputation. No disclosure was made regarding the instability of the program provider.

June 6, 2025 – The TEFL course was taken offline entirely, leaving students without access to the service purchased.

The University has since proposed "solutions" that are not equivalent:

The Legacy Program – Requires completion by October 31, 2025 (less than one year from purchase). When I requested a modest extension due to delays caused by the University's failed partnership, I was told I must submit additional medical documentation. This is inappropriate and discriminatory, as I already live with documented conditions (TBI, PTSD, herniated disc) that require flexibility.

The New Program (November 2025) – Represents a clear downgrade:

Reduced from 150 hours to 125 hours

Removal of Business English and Test Preparation specializations

Erasure of all progress already made

This is not the product I purchased, nor the one advertised under the University's name.

The University of Toronto continued to accept payment for a program it could not deliver, during a period when its contracted provider was already insolvent. This raises not only ethical concerns but also potential consumer protection violations.

Accordingly, I request a full refund within 10 business days. If this matter is not resolved, I will be compelled to escalate by filing formal complaints with Consumer Protection Ontario, the Ontario Ministry of Colleges and Universities, and exploring further avenues for accountability.

I trust the University will take responsibility for its partnerships and protect the integrity of its name by resolving this matter promptly.

Sincerely,
Alexander Aders

[redacted] [redacted]

Your Concerns about the TEFL Program

6 messages

Hanadi Abdullah <hanadi.abdullah@utoronto.ca> 9 septembre 2025 à 12:18
À : [redacted]

Hello Alex,

Your correspondence to the OISE Dean regarding your concern about the TEFL program has been redirected to our team, who manages the TEFL program and working closely with professionals like yourself who are seeking to complete it.

To better understand your specific needs, I'd be happy to schedule a call between you and the Associate Director for International & Innovation at OISE Continuing & Professional Learning, who is leading the team overseeing the TEFL program.

We're committed to helping you find a path forward and would be glad to support you in finding a solution that works for you. If this works, please let me know what your preferred day/time to connect and I would be happy to schedule a meeting accordingly.

Best regards,
Hanadi

DEFY GRAVITY

HANADI ABDULLAH

Senior Program Manager

OISE Continuing &

Professional Learning

University of Toronto

252 Bloor St West

Toronto, ON, M5S 1V6

Mobile: [redacted]

hanadi.abdullah@utoronto.ca

cpl.oise.utoronto.ca

UNIVERSITY OF TORONTO
OISE | ONTARIO INSTITUTE
FOR STUDIES IN EDUCATION

Continuing & Professional Learning

InnovED

[redacted] [redacted]
À : Hanadi Abdullah <hanadi.abdullah@utoronto.ca>

Dear Hanadi,

I hope you are doing well. Thank you for confirming that my letter has been received by the Dean's office and that your team is reviewing the concerns I raised. My request is for a full refund of $1,196.00 to be issued by check to my home address, which is listed on the receipt attached in my previous email. I would also prefer to keep all communication in writing.

Sincerely,

Alexander Aders

[Texte des messages précédents masqué]

Hanadi Abdullah <hanadi.abdullah@utoronto.ca> 23 septembre 2025 à 10:26
À : [redacted]
Cc : Michael Cassidy <michael.cassidy@utoronto.ca>

Dear Alexander,

Apologies for the delay in getting back to you, and I completely understand your preference to have communications in writing only. I'm happy to provide further context about the administrative transition of the TEFL program from Teach Away to OISE.

The sudden TeachAway closure due to the bankruptcy of their owner company Pluribus Technology company has been very frustrating for us all, but especially for the learners. Although this company entanglement ended an arrangement that existed for more than 10-years – operating as our "TEFL program," we remain committed in offering access to the Legacy Program with a time period to finish the program with any necessary extensions, and also offer you enrolment in the new program that launches in November, 2025.

Regarding the timeline, while a general University of Toronto Accounts Receivable contact received the Notice to Creditors in December 2024, OISE CPL was not made aware of this information until late March 2025. The formal legal disclaimer of the Master Agreement between OISE and Teach Away (Kesson/Pluribus) was finalized in May 2025.

It is also important to note that this situation unfolded under the constraints of a **court-supervised creditor protection process**, which imposed legal limitations on communication and action by all involved parties,

including OISE CPL and the University

We would really like you to consider participating in the newly offered program if you feel that you are unable to finish with the current program. We've put a series of supports for all learners to help them make that decision (continue with or pause to start a new program). We currently have an active facilitator who is guiding learners individually and through group sessions through the completion of the asynchronous TEFL program that you purchased and have access to. Our team would be happy to connect you directly to that support and/ or communicate further about supporting your completion.

Regarding Refunds:

As outlined in the FAQs, when you registered, your payment was made directly to our delivery partner, Kesson Group Inc. (then operating as Teach Away). OISE CPL did not collect tuition payments and is therefore not able to process refunds. That said, we're here to support you in moving forward through one of the two pathways designed to provide you the options to complete your program. You can continue with the program that you started, or you can start a new program that starts end of next month.

Please don't hesitate to reach out with further questions. We remain committed to helping you find a path forward.

Best regards,

Hanadi

—

HANADI ABDULLAH

Senior Program Manager

OISE Continuing & Professional Learning

University of Toronto

Mobile: [redacted]

hanadi.abdullah@utoronto.ca

From: [redacted]
Sent: Tuesday, September 9, 2025 1:16 PM
To: Hanadi Abdullah <hanadi.abdullah@utoronto.ca>
Subject: Re: Your Concerns about the TEFL Program

[Texte des messages précédents masqué]

Michael Cassidy <michael.cassidy@utoronto.ca> 23 septembre 2025 à 11:17
À : [redacted]

Dear Mr. Aders,

Thank you for your correspondence regarding the TEFL program. You have been directed appropriately to me and this office, as I serve as the Associate Director, International & Innovation, with responsibility for the TEFL portfolio. I will be your point of contact in resolving this matter.

As shared by Hanadi, Teach Away operated the TEFL program for more than a decade as OISE's contracted delivery partner. Its parent company's bankruptcy and court-supervised restructuring in June 2025 brought that arrangement to an abrupt end. While this development was beyond the University's control, we fully appreciate the disruption it has caused you and other learners.

To mitigate this disruption, OISE CPL has implemented two pathways:

1. **Legacy Completion Pathway** – You retain access to the 150-hour TEFL program you purchased. An active facilitator is available to guide learners individually and in groups. Extensions are being managed case by case in accordance with University policy.
2. **Transition to New Program** – Launching in late October 2025, this program provides a restructured pathway to certification. While the content differs from the legacy program (125 hours, without the Business English and Test Preparation specializations), it is supported and recognized as a credible credential.

As outlined in program FAQs and at the time of enrolment, tuition fees were paid directly to Kesson Group Inc. (Teach Away), not to the University of Toronto. Under University policy, OISE CPL did not receive these funds and therefore cannot issue refunds.

Although refunds cannot be processed by the University, I am committed to working with you to ensure you can complete a TEFL certification pathway of value. I would welcome confirmation of which option you wish to pursue so that my team and I can provide you with tailored support.

Thank you again for raising your concerns. With this referral, I will now manage this matter directly until resolution.

Sincerely, Michael

MICHAEL CASSIDY
Associate Director

Office of Continuing & Professional Learning

Research Partnership and Innovation

Ontario Institute for Studies in Education

University of Toronto

Michael.Cassidy@utoronto.ca

[redacted]

[Texte des messages précédents masqué]

[redacted] [redacted]

À : Michael Cassidy <michael.cassidy@utoronto.ca>

Dear Mr. Cassidy,

Thank you for your message and for clarifying the options available. After considering both pathways, I would like to continue with the Legacy TEFL program rather than transition to the new program.

Because of my medical circumstances (TBI, nerve damage, and related injuries from a car accident), I will need additional time beyond the current October 31 deadline in order to complete the program successfully. Could you let me know what type of extension may be possible under University policy?

I appreciate your support and look forward to your guidance on the next steps.

Sincerely,

Alexander Aders

[Texte des messages précédents masqué]

Michael Cassidy <michael.cassidy@utoronto.ca> 24 septembre 2025 à 12:11
À : [redacted]

Dear Mr. Aders, I appreciate your situation and I'm sorry to learn about the accident and subsequent medical circumstances.

Please know that this is a priority for us and I'll be more than happy to connect with my team who can reach out to you to determine the best way we can support you to complete your intended certification. I'm off today but will be back tomorrow – hoping to connect tomorrow or Friday.

Sincerely, Michael

MICHAEL CASSIDY
Associate Director

Office of Continuing & Professional Learning

Research Partnership and Innovation

Ontario Institute for Studies in Education

University of Toronto

Michael.Cassidy@utoronto.ca

[redacted]

[Texte des messages précédents masqué]

Tab 6

Outlook

RE: Refund request: Alexander Aders

From Adam Fisher <adam@harrispartners.ca>
Date Thu 9/11/2025 4:40 PM
[redacted]

1 attachment (4 MB)
Statement of Affairs (Creditors).pdf;

Hi Alex,

I am so sorry for your situation. The company is bankrupt and there is no money for the creditors or any refunds.

Regards,

Adam

From: [redacted]
Sent: September 8, 2025 12:20 AM
To: Adam Fisher <adam@harrispartners.ca>
Subject: Refund request: Alexander Aders

Dear Pluribus Technologies,

I would like to request a refund for my purchase of the 150-hour TEFL course through the University of Toronto. I believe that my circumstances were exceptional because I was recovering from the injures related to a serious car accident on 10/05/2024. I was in a head-on collision on I-4 (a major highway in Orlando, Florida) at 65 miles per hour due to no fault of my own. As a result, I have a herniated disk, TBI (Traumatic Brain Injury), PTSD, and nerve damage. I was making slow progress during the course and had the impression that there was a full year to complete the course. I was not aware that the partnership with Teach Away would end a few months after the date of my purchase. Thus, I am not eligible to complete the legacy course. Would it be possible to receive a refund for this purchase?

Thank you,
Alex Aders

Tab 7

Outlook

Re: Refund request: Alexander Aders

From Teach Away <info@teachaway.com>
Date Mon 9/8/2025 9:57 AM
[redacted]

Hi Alexander,

Thanks for reaching out. We're sorry to hear about the disruption to your course access.

The OISE Continuing and Professional Learning (CPL) at the University of Toronto now solely owns and operates the OISE TEFL course. We understand how important your TEFL certification is, and we want to help you continue progressing toward your goals.

Explaining the Changes to Your Course:
Earlier this year, Teach Away's former parent company underwent a court-supervised restructuring process. As part of that process, the Ontario Institute for Studies in Education (OISE) made the decision to take full ownership and management of the OISE TEFL program. As a result, the course is now solely operated by OISE Continuing and Professional Learning at the University of Toronto. Teach Away no longer has access to or legal authority over the OISE TEFL program, including your login, course records, payments, and progress. OISE has not provided us with any further information, and we do not have the ability to intervene in their internal processes.

Clarifying Your Refund Eligibility:
Earlier this year, Teach Away's former parent company entered court-supervised restructuring under Canada's Companies' Creditors Arrangement Act (CCAA) where some of the assets were sold to a new company. During this legal process, all financial matters—including student payments—became part of the formal restructuring proceedings. Because the new organization (Teach Away) never received your course payment and does not have access to the course, we are unable to process a refund. We understand this is not the outcome you were expecting, and we're truly sorry for the frustration and disruption this situation has caused.

To support you through this transition, we've included a few next-step options below.

Option 1: Contact OISE for Course Support
To inquire about your existing OISE TEFL course, you need to contact OISE directly. Support is now managed by OISE Continuing and Professional Learning at the University of Toronto. They will be best positioned to assist with your request. You can contact them directly at the email addresses below:
oise.cpl@utoronto.ca

Option 2: Complimentary Access to Teach Away's TEFL Course
While we can't intervene in OISE's administration, as a gesture of goodwill, we'd like to offer you complimentary access to Teach Away's own 120-hour TEFL course so you can continue your learning without further delay. If you choose to enroll, we'll match your previous progress in the course so you can pick up where you left off.

Just let us know the course you're enrolled in and your progress so far in the course, and we'll get you set up right away.

We're sorry for the disruption to your learning experience. Despite our best efforts, the transition of the OISE TEFL program was entirely outside of our control. We understand this has been a frustrating experience. Please let us know if you would like complimentary access to the Teach Away 120-hour TEFL to continue your learning.

Sincerely,

The Teach Away Team

--
Prefer fewer emails from me? Click here

On Wed, Sep 3, 2025 at 7:57 PM, alex aders [redacted] wrote:

> Dear Teach Away,
>
> I would like to request a refund for my purchase of the 150-hour TEFL course through the University of Toronto. I believe that my circumstances were exceptional because I was recovering from the injures related to a serious car accident on 10/05/2024. I was in a head-on collision on I-4 (a major highway in Orlando, Florida) at 65 miles per hour due to no fault of my own. As a result, I have a herniated disk, TBI (Traumatic Brain Injury), PTSD, and nerve damage. I was making slow progress during the course and had the impression that there was a full year to complete the course. I was not aware that the partnership would end a few months after the date of my purchase. Thus, I am not eligible to complete the legacy course. Would it be possible to receive a refund for this purchase?
>
> Thank you,
> Alex Aders

Tab 8

From: Michael Cassidy
To: Alex Aders
Subject: Re: Formal Appeal for Refund - TEFL Program Institutional Failure
Date: December 15, 2025 9:30:33 PM

Hi Alex,

Your correspondence of December 8, 2025 to the President has been appropriately redirected to me and the Office of OISE Continuing & Professional Learning, the University unit accountable for governance of the TEFL Online program.

To ensure the factual record is clear:

- The University of Toronto did not receive or process your TEFL program payment; payment was made directly to Teach Away/Pluribus, which acted as the merchant of record.
- When Teach Away/Pluribus entered creditor protection, this became a third-party insolvency matter. The University is itself a creditor in that process and cannot assume liability for funds it did not receive.
- You pursued refund options through Consumer Protection Ontario and the Ministry of Education, both of which appropriately redirected you.
- You elected to continue and complete the program through the transition pathway that was made available.

For these reasons, the University—through the Office of OISE Continuing & Professional Learning—is not able to issue a refund.

Notwithstanding the above, and in an effort to support your continued professional learning, the following options remain available to you:

1. Continued access to the TEFL Online Legacy program you initiated, with CPL support to extend the completion deadline to a mutually agreeable timeline; or
2. Complimentary registration in the new TEFL Online program, supporting completion of TEFL certification; or
3. Complimentary registration in another program within the OISE CPL catalogue, at equivalent value.

Please advise your preference by 5:00 p.m. EST on December 19, 2025 so that arrangements can be completed prior to the University's closure from December 24 2025 through January 4 2026 (inclusive).

Sincerely, Michael

From: [redacted]
Date: Monday, December 8, 2025 at 9:30 PM
To: President <president@utoronto.ca>
Cc: Erica Walker <erican.walker@utoronto.ca>, Michael Cassidy <michael.cassidy@utoronto.ca>
Subject: Formal Appeal for Refund - TEFL Program Institutional Failure

Dear President Woodin,

I am writing to formally appeal for a refund of $1,196.00 USD paid to the University of Toronto on January 28, 2025, for a 150-hour TEFL certification program. This appeal follows the exhaustion of all administrative remedies through the Dean's office, Consumer Protection Ontario (Case File: CAS-118208-X0W3T), and the Canadian Anti-Fraud Centre (Complaint #2025-81555).

Timeline of Institutional Failure

January 23, 2025 – Pluribus Technologies Corp. (owner of Teach Away, your contracted provider) publicly announced court-supervised restructuring proceedings.

January 28, 2025 – The University accepted my $1,196.00 payment with no disclosure of the provider's insolvency or program instability.

June 6, 2025 – The TEFL course was abruptly taken offline, eliminating all student access mid-program.

September 23, 2025 – OISE CPL staff confirmed that "a general University of Toronto Accounts Receivable contact received the Notice to Creditors in **December 2024**"—more than one month before accepting my payment.

The Core Issue: Institutional Knowledge and Negligence

The University's own staff admission establishes that the institution had constructive knowledge of Pluribus/Teach Away's financial instability **before** accepting my payment. Whether this information reached OISE CPL management by late March 2025 (as they claim) is an internal communication failure—not a defense against consumer protection obligations.

When a university accepts payment for services, it assumes responsibility for due diligence regarding its delivery partners. The failure of information to flow from Accounts Receivable to OISE CPL represents institutional negligence, not force majeure.

Critical Evidence: Teach Away's Confirmation of University Control

On September 8, 2025, Teach Away sent me written confirmation that directly contradicts the University's public statements:

"The OISE Continuing and Professional Learning (CPL) at the University of Toronto **now**

solely owns and operates the OISE TEFL course... As a result, the course is now **solely operated by OISE Continuing and Professional Learning** at the University of Toronto. **Teach Away no longer has access to or legal authority over the OISE TEFL program, including your login, course records, payments, and progress.**"

This correspondence establishes three critical facts:

1. **OISE assumed full ownership and control of the program** during the bankruptcy proceedings
2. **OISE has possession of all student payment records and course data**
3. **The University's FAQ directing students to seek refunds from the bankrupt provider is demonstrably false**

The University cannot simultaneously claim it "did not collect tuition payments" while also having "taken full ownership and management" of the program, including all associated financial records. One of these statements must be untrue.

Why the "Solutions" Are Inadequate

The University has offered two alternatives, neither of which remedies the breach:

The Legacy Program

- Requires completion by October 31, 2025 (unrealistic compressed timeline)
- I was making steady progress in the original course before the June 6 shutdown
- When the platform went offline, **all my progress was erased**
- The "restart" in the Legacy Program meant beginning from zero—I had retained no momentum after months of interrupted access
- My traumatic brain injury (documented from October 5, 2024 car accident) makes linear course completion neurologically difficult
- Each attempt to restart results in lost concentration and inability to maintain academic writing pace

The New Program (November 2025)

- Reduced from 150 hours to 125 hours
- Eliminates Business English and Test Preparation specializations I purchased
- Erases all prior progress
- This is material alteration of the contracted service

Why This Matters Beyond My Case

This situation affects vulnerable populations:

- International students who paid in reliance on the University's reputation

- Students with disabilities who cannot meet compressed timelines
- Individuals who lost progress due to the platform shutdown and were unable to recover momentum

The University of Toronto trades on its reputation as Canada's premier institution. Students make financial decisions based on that trust. When the institution accepts payment while possessing knowledge (even if siloed in Accounts Receivable) of a partner's insolvency, it breaches that trust.

Request for Presidential Intervention

I respectfully request that you authorize a full refund of $1,196.00 USD, recognizing that:

1. The University had institutional knowledge of Pluribus's financial distress before accepting my payment
2. Internal communication failures are the University's responsibility, not the student's
3. The service contracted for was never fully delivered
4. The alternatives offered constitute material breach of contract
5. My medical circumstances (TBI) prevent completion via the Legacy pathway
6. Continuing to deny refunds while directing students to a bankrupt provider is not consistent with the University's values

Consumer Protection Ontario declined jurisdiction, redirecting me to the Ministry of Education. The bankruptcy trustee confirmed no funds exist for creditor refunds. Teach Away confirmed OISE assumed program control post-bankruptcy. All parties deflect responsibility.

You are the final institutional authority who can override this administrative impasse and restore the University's integrity in continuing education partnerships.

I have attached comprehensive documentation including:

- Payment receipt (January 28, 2025)
- Bankruptcy announcements (January 23, 2025)
- Consumer Protection Ontario correspondence
- Canadian Anti-Fraud Centre filing
- Complete email chain with OISE staff
- Bankruptcy trustee confirmation of insolvency

Closing

I do not seek to harm the University's reputation. I seek acknowledgment that the institution failed in its duty to verify partner stability before accepting payment, and that this failure should not be borne by the student.

A $1,196.00 refund is a rounding error in the University's budget. For me, it represents trust

placed in Canada's top-ranked institution—trust that was misplaced not through my error, but through institutional negligence.

I respectfully request your personal review of this matter and authorization for a refund within 15 business days.

Sincerely,

Alexander John Aders